

**AGREEMENT
BETWEEN THE CITY OF CHEYENNE, WYOMING, AND
FCI CONSTRUCTORS OF WYOMING LLC, FOR THE
PRE-CONSTRUCTION AND CONSTRUCTION PHASE SERVICES
FOR THE CHEYENNE PUBLIC SAFETY CENTER**

This Agreement ("Agreement") is made by and between City of Cheyenne, Wyoming (hereinafter collectively referred to as "Owner"), and FCI Constructors of Wyoming LLC, (hereinafter referred to as "CMAR") as follows:

INTRODUCTORY PROVISIONS

WITNESSETH, that the Owner and CMAR, for the consideration hereinafter stated and in exchange for the mutual covenants set forth herein, hereby agree as follows:

GENERAL TERMS:

- A. The "Owner". The "Owner" referred to in this Agreement is the City of Cheyenne, Cheyenne Police Department, Cheyenne, Wyoming, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
- B. The "CMAR". The "CMAR" referred to in this Agreement is FCI Constructors of Wyoming LLC.
- C. The "Project Architect". The "Project Architect" referred to in this Agreement is Pappas & Pappas Architects.

SECTION 1. LEGAL PROCESS. This Agreement is entered into pursuant to the provisions of Wyo. Stat. § 16-6-701, *et seq.*

SECTION 2. SCOPE OF THE PROJECT. The CMAR shall furnish services in connection with the project described generally as Cheyenne Public Safety Center, the final scope of the project(s) and budget therefore to be determined by the Owner, Project Architect and CMAR. The scope of the Project is more particularly described as follows:

Pre-construction services and construction management at risk services for the City of Cheyenne, Cheyenne Police Department, Cheyenne Public Safety Center, as more particularly described in the Contract Documents, (hereinafter collectively referred to as the "Projects" and individually as "Individual Project" or "Project"). The total estimated construction budget for all of the Project(s) is:

Construction Budget

Description	Budget
GMP	\$To Be Determined
Total Construction Budget	\$ 18,200,000.00

SECTION 3. CONTRACT DOCUMENTS. The Owner and the CMAR agree that the Contract Documents for the Project shall consist of this Agreement and the following documents incorporated into and made a part of this Agreement, and are as fully incorporated into the Agreement as if attached to this Agreement or repeated herein, to-wit:

- a. The CMAR Fee Proposal Form, "Exhibit A."
- b. The CMAR Fee Structure Form, "Exhibit B."
- c. Owner's RFP-9-14 – Construction Manager at Risk Cheyenne Public Safety Center, Appendices and Submittals.
- d. Certificate of Insurance.
- e. CMAR Guaranteed Maximum Price (GMP) Submission and Agreement (to be added by addendum to this Agreement upon acceptance and written approval by both the CMAR and Owner).
- f. GMP Guarantee Bond Agreement to be attached hereto as an Amendment at the time of the Agreement on the GMP.
- g. CMAR Final Price Statement (to be added by addendum to this Agreement upon written acceptance and approval by both the CMAR and Owner).
- h. Any amendments or modifications of this Agreement made after execution of this Agreement.
- i. The Project Drawings and Specifications.

This Agreement and the written Contract Documents represent the entire and integrated agreement between the parties hereto and supersedes prior negotiations, representations or agreements, either written or oral.

SECTION 4. BINDING EFFECT. This Agreement, including the Contract Documents incorporated herein, shall be binding upon and inure to the benefit of the Owner and the CMAR and their respective successors, heirs and assigns. The effective date of the Agreement is the date on which the Agreement is signed by the last party.

NOW THEREFORE, the Owner and CMAR agree as follows:

ARTICLE 1 GENERAL PROVISIONS

1.1 RELATIONSHIP OF PARTIES. The CMAR accepts the relationship of trust and confidence established with the Owner by this Agreement, and covenants with the Owner to furnish the CMAR's reasonable skill and judgment and to cooperate with the Project Architect in furthering the interests of the Owner in the management by the CMAR of the Project defined in the Contract Documents in accordance with the Owner's requirements and construction cost limitations as approved by the Owner and set forth in the Contract Documents.

1.1.1 The CMAR shall furnish pre-construction consultation services and construction administration and management services and shall use the CMAR's reasonable skill and judgment to perform the Project in an expeditious and economical manner consistent with the interests of the Owner. The Owner and CMAR shall endeavor in good faith to promote harmony and cooperation among the Owner, Project Architect, CMAR, CMAR's subcontractors and other persons or entities employed by the Owner for the Project.

1.1.2 The Owner, by and through identified authorized representatives, shall have the power to enter into or amend a contract, to approve changes in the scope of the Project or the Work of the Project, to approve and execute a Change Order or Construction Change Directive modifying the Guaranteed Maximum Price or to agree to an extension to the date of Substantial or Final Completion. The Owner shall designate in writing the person authorized to sign documents on behalf of the Owner at the time of the execution of this Agreement.

1.2 TERM OF AGREEMENT. The term of this Agreement shall be for a period beginning with the date of execution of the Agreement, and continuing through the occurrence of one of the following events, whichever occurs first in time: (1) the completion of all services provided by the CMAR for the Project and the issuance of a Certificate of Final completion, subject to contractual services under this Agreement for warranty work; or (2) the termination of this Agreement according to its terms. This Agreement shall not create a continuing contract for construction management services for future building projects beyond the terms of this section.

1.3 SUBCONTRACTS AND GENERAL CONDITIONS. The subcontracts and general conditions of contract for all Subcontractors shall be prepared by the CMAR, subject to review and approval by the Owner upon request.

1.4 DEFINITIONS.

1.4.1 THE PROJECT. For purposes of this Agreement, "the Project" shall mean the project described in the Contract Documents. The Project shall have a single construction budget, plans and specifications, schedule and Guaranteed Maximum Price (GMP).

1.4.1.1 CONSTRUCTION BUDGET. The Construction Budget shall include the anticipated Cost of the Project established by the Owner and as identified in the Contract Documents.

1.4.2 THE WORK AND DIVISIONS OF THE WORK. For purposes of this Agreement, “the Work” shall mean the Subcontracts or Multiple Subcontracts for the construction of the Project. The CMAR is responsible for the construction, administration and/or supervision of the work under the Contract Documents. The Work shall be organized, designed, and bid on the basis of all applicable Codes as provided by the Architect.

1.4.3 COST OF THE PROJECT. For purposes of this Agreement, “Cost of the Project” shall mean the total cost of all Subcontracts and Suppliers and self-performed work by the CMAR for the construction of the Project and site improvements described in the Contract Documents “Cost of the Project” shall not include the cost of any insurance or surety contracts purchased or controlled by the Owner, or any other contracts or agreements that are not part of or described by the Contract Documents, or Architect/Engineering or other professional fees and expenses.

1.4.4 CMAR’S COMPENSATION FOR BASIC SERVICES. For purposes of this Agreement, “CMAR’s Compensation for Basic Services” shall mean the compensation for services rendered to the CMAR that is to be paid pursuant to the provisions of the Contract Documents.

1.4.5 GENERAL CONDITIONS COSTS. For purposes of this Agreement, “General Conditions Costs” shall mean those expenses outlined in the Contract Documents.

1.4.6 FAST TRACK PROJECT. For purposes of the Agreement, the term “Fast Track Project” shall mean an Owner elected design and construction schedule that is accelerated to meet the Owner’s facility needs which requires the bidding of the Work in multiple phases allowing the CMAR to begin construction prior to the completion of Construction Documents.

1.4.7 CONSTRUCTION CONTINGENCY. For purposes of this Agreement, the term “Construction Contingency” as referred to and identified in the budget, or cost estimates for the Project, including any form of guaranteed maximum price, shall mean a dollar amount not designated for any division of the Work which is available to be applied to the budget for a specified division or divisions of the Work to pay the cost of changes in the Work or an increase in the cost of labor and/or materials; provided, that all funds identified as contingency funds are available for the project on an as needed basis and shall at all times be the sole property of the Owner. The Guaranteed Maximum Price (GMP) will contain a separately-identified contingency amount (the “Construction Contingency”). The Construction Contingency is not allocated to any particular item of the Cost of the Project and is established for the CMAR’s use as may be required for costs incurred in the Work from unforeseeable causes, or details which could not have been anticipated by the CMAR at the time of the Owner’s approval of the GMP and Final Price (“FP”), as defined in section 1.4.8.3. Such unforeseeable causes or unanticipated details are limited to refinement of details of design within the scope of standards, quality and quantities which are reasonably inferable from the Construction Documents. The CMAR, only upon written approval by Owner, may utilize the Construction Contingency for any of the above items within the Cost of the Project without the

necessity of a Change Order, without constituting a change in the Scope of the Work, and without resulting in any change in the GMP. Any unforeseeable causes or unanticipated details which exceed the Construction Contingency shall be borne by the CMAR at the CMAR's sole risk. All savings in the Construction Contingency will accrue and be available for use, only as detailed above, by the CMAR until the CMAR's final accounting. In the final accounting, all supporting documentation for all uses of the Construction Contingency shall be provided to Owner. Upon final accounting, all remaining monies in the Construction Contingency shall accrue to the Owner.

1.4.8 GUARANTEED MAXIMUM PRICE. For purposes of this Agreement, the term Guaranteed Maximum Price (GMP) shall mean the total of the sum of the Cost of the Project, General Conditions Costs and the CMAR's Compensation for Basic Services for the Project as set forth in the Contract Documents. For purposes of this Agreement, a GMP shall be provided in two stages, the Guaranteed Maximum Price (GMP) and the Final Price (FP). Those terms are defined as follows:

1.4.8.1 COST ESTIMATE. The Cost Estimate shall include the total of the sum of the Cost of the Project, General Conditions Costs and the CMAR's Compensation for Basic Services for the Project as outlined in the Contract Documents. The Cost Estimate shall be provided by the CMAR to the Owner upon the completion by the Project Architect of the following levels of design for the Project:

- a. 35% - Design Development phase with up to a 10 % construction contingency;
- b. 60% - Construction documents phase to include completion of infrastructure construction documents, including landscaping, footings and foundations, masonry, metals, and mechanical/electrical divisions with up to a 7.5% construction contingency; and
- c. 95% - Construction documents phase to include all divisions of the Work with up to a 5 % contingency.

1.4.8.2 GMP. The GMP shall include the total of the sum of the Cost of the Project, General Conditions Costs and the CMAR's Compensation for Basic Services for the Project as set forth in the Contract Documents. The CMAR shall submit the GMP proposal for the Project within thirty (30) days of CMAR's receipt of a request for a GMP from the Owner provided that such request shall not be made prior to the Cost Estimate submitted by the CMAR in section 1.4.8.1(c).

1.4.8.2.1 The GMP shall include assumptions, allocations and clarifications with regard to those portions of the Work for which bids have not been let or awarded, which amount shall include a Construction Contingency of not more than that provided at section 1.4.8.1 above of the Cost of the Project. The GMP shall be negotiated between the CMAR and Owner. Upon agreement as to the amount of the GMP, the agreed upon GMP proposal shall be set forth in the Owner and CMAR Guaranteed Maximum Price (GMP) Agreement and submitted to the Owner for written approval. The GMP shall be subject to additions and deductions by changes in the Work only as expressly set

forth in the Contract Documents. Such GMP maximum sum as adjusted by approved changes in the Work in accordance with the Contract Documents is referred to in the Contract Documents as the Guaranteed Maximum Price or GMP.

1.4.8.3 FINAL PRICE. For purposes of this Agreement, "Final Price" or "FP" shall mean the sum of the final Cost of the Project, General Conditions Costs, and the CMAR's Compensation for Basic Services as calculated by the Owner (hereinafter the "Final Price" or "FP") and set forth in the Contract Documents. The FP must be issued by the CMAR to the Owner within forty-five (45) days of the receipt of bids on the last bid package scheduled to be issued for the Project. The Final Price may include a construction contingency of up to two percent (2%). The Final Price shall be determined by the Owner based upon the actual Cost of the Project bid. The Owner shall have the right to inspect the records of the CMAR and conduct an audit to confirm the CMAR's calculation of the Final Price.

1.4.8.4 SALVAGE MATERIALS. The Owner will retain ownership of all recyclable and salvage materials which are removed from the project site during demolition and reconstruction, including all copper, aluminum, steel, iron, and other metals and non-metallic materials which have salvage value (regardless of the form in which any such copper, aluminum, or other salvageable metals or materials may be found including wiring, piping, structural components, or other forms), and that the Owner shall have the right to dispose of any such salvage materials and retain the proceeds thereof.

1.4.9 CRITICAL PATH METHOD SCHEDULE. For purposes of this Agreement, "Critical Path Method Schedule" or "CPMS" shall mean the schedule of the construction phase milestone dates for the bidding of all Subcontracts and the completion of all phases of the Work culminating in the date of the issuance of the Certificate of Substantial and Final Completion by the Project Architect for the Project as set forth in the Contract Documents. The final CPMS shall be provided as part of the submission of the GMP and the GMP agreement. Such CPMS shall be subject to adjustment for delays in the receipt of construction documents from the Project Architect and by approved changes in the scope of the Work, and shall be referred to in the Contract Documents as the Critical Path Method Schedule or CPMS. The CMAR shall coordinate and integrate the CPMS for the Project with the services and activities of the Project Architect as set forth in the Project Architect's Efforts Schedule for design services. As design proceeds through Schematic Design, Design Development, Construction Documents, and construction phases of the Project the CPMS shall be updated to indicate proposed activity sequences and durations, milestone dates for receipt and approval of pertinent information, submittal of GMP proposal, preparation and processing of shop drawings and samples, delivery of materials or equipment requiring long-lead time procurement, Owner's occupancy requirements showing portions of the Project having occupancy priority, proposed date of Substantial Completion, and proposed date of Final Completion acceptable to the Owner.

1.4.10 PROJECT TEAM. For purposes of this Agreement, "Project Team" shall mean the Owner, the CMAR, and the Project Architect.

1.5 DATE OF COMMENCEMENT AND SUBSTANTIAL COMPLETION.

1.5.1 The date of commencement of the Work shall be the date of this Agreement unless a different date is stated.

1.5.2 The Contract Time shall be measured from the date of commencement, subject to adjustments of this Contract Time as provided in the Contract Documents.

1.5.3 The CMAR shall achieve Substantial Completion of the Work and Final Completion of the Work for each Project as follows:

1.5.3.1 Substantial Completion: A date to be determined by mutual written agreement by Owner and CMAR upon submission of GMP or FP by CMAR, and not to exceed ____ days following issuance by Owner of Notice to Proceed in accordance with section 2.1.5.

1.5.3.2 Final Completion: A date to be determined by mutual written agreement by Owner and CMAR upon submission of GMP or FP by CMAR, and not to exceed ____ days following issuance by Owner of Notice to Proceed in accordance with section 2.1.5.

1.6 AGREEMENT AND PAYMENT CONTINGENT UPON AVAILABILITY OF APPROPRIATED FUNDS UNDER THE BUDGET.

1.6.1 Any other provisions of the Contract Documents to the contrary notwithstanding, it is expressly understood and agreed that the legal obligation of the Owner under this Agreement, including the obligation of the Owner to pay the contract sum or any part thereof shall be contingent upon the availability of funds and any formal action of the Owner for the purpose of payment of the Contract Sum or any part thereof. In the event the funding for the Project becomes unavailable for any reason, the Owner may terminate this Agreement without cause under the provisions of Article 9 hereof.

1.6.2 It is agreed that the obligations of the CMAR herein are expressly contingent upon reasonable proof to the CMAR that the Owner has funds specifically approved to fund the Project.

1.7 COMPLIANCE WITH STATUTES. As a material term of this Agreement, the CMAR shall at all times comply with all applicable federal and state statutes, including, but not limited to:

1.7.1 Pursuant to Wyo. Stat. § 16-6-104, Wyoming made materials and products, and Wyoming suppliers of products and materials of equal quality and desirability shall have preference over materials or products produced or supplied outside the state and any contract with the successful CMAR shall so provide. The preference created by Wyo. Stat. § 16-6-104 shall be applied in a manner identical to the preference for resident contractors in Wyo. Stat. § 16-6-102.

1.7.1.2 Pursuant to Wyo. Stat. § 16-6-103, the CMAR shall not subcontract more than thirty percent (30%) of the work covered by this Agreement to nonresident contractors.

1.7.1.3 Pursuant to Wyo. Stat. § 16-6-106, preference is hereby given to materials, supplies, agricultural products, equipment, machinery and provisions produced, manufactured or grown in Wyoming, or supplied by a resident of the state, quality being equal to articles offered by the competitors outside of the state.

1.7.1.4 Pursuant to Wyo. Stat. § 16-6-107, the structure or structures to be constructed pursuant to this RFP shall be constructed and maintained by materials produced or manufactured in Wyoming if Wyoming materials are suitable and can be furnished in marketable quantities. Preference shall not be granted for materials of an inferior quality to those offered by competitors outside of the state, but a differential of not to exceed five percent (5%) may be allowed in cost of contracts less than Five Million Dollars (\$5,000,000.00) for the Wyoming materials of equal quality as against materials from states having or enforcing a preference rule against "out-of-state" products.

1.7.1.5 Pursuant to Wyo. Stat. § 16-6-203, the CMAR and Subcontractors engaged to perform services on the Project shall employ only Wyoming laborers on the Project except other laborers may be used when Wyoming laborers are not available for the employment from within the state or are not qualified to perform the work involved. The CMAR hereby specifically acknowledges the requirements of this section. Neither the CMAR nor its Subcontractors may employ other than Wyoming laborers unless:

- a. The CMAR and its Subcontractors inform the nearest state workforce center of their employment needs at least eleven (11) days before work is commenced;
- b. The state workforce center certifies that the CMAR and its Subcontractors' needs for laborers cannot be filled from those Wyoming laborers listed with the Wyoming department of workforce services. The department shall respond to a CMAR's or Subcontractor's request for certification within ten (10) days of the date the information is filed; and
- c. The CMAR shall also agree to respond to requests from the Wyoming department of workforce services for the most recent construction schedule for the project.

1.7.2 Wyo. Stat. § 16-6-708 requiring the CMAR to comply with all reporting and administrative requirements including requirements relating to retainage, payment and performance bonding and default contracts.

1.7.3 Wyo. Stat. §§ 16-6-115 through 16-6-117 regarding final settlement and final payments to contractors and subcontractors.

1.8 EQUAL EMPLOYMENT OPPORTUNITY AND VERIFICATION OF IMMIGRATION STATUS. The CMAR shall comply with applicable laws, regulations and special requirements of the Contract Documents regarding equal employment opportunity and affirmative action programs; and specifically shall comply with all requirements of the federal immigration verification system to determine the work eligibility status of new employees physically performing services within the State of Wyoming, if required by state or federal law or regulation.

ARTICLE 2 CONSTRUCTION MANAGER AT RISK'S RESPONSIBILITIES

The CMAR shall perform the services described in this article. The services to be provided under this Article 2 constitute the Construction Management Services to be provided by the CMAR, which are to be divided between Pre-Construction Phase services (sections 2.1, 2.2, 2.3 and 2.4), and Construction Phase services (sections 2.5, 2.6 and 2.7). If the Owner and CMAR agree in writing after consultation with the Project Architect, the Construction Phase may commence before the Pre-construction Phase is completed, in which case both phases shall proceed concurrently.

2.1 GENERAL SERVICES—SCHEMATIC DESIGN, DESIGN DEVELOPMENT AND CONSTRUCTION DOCUMENTS CONSULTATION AND EVALUATION. The CMAR shall participate throughout the design process and provide an evaluation of the Owner's program and Construction Budget requirements, each in terms of the other, as they relate to the development of the schematic design, design development and construction documents phases of the Project with the Project Architect and Owner.

2.1.1 CONSULTATION. The CMAR shall jointly schedule and attend regular meetings with the Owner and Project Architect, and other Owner designated committees or groups to review and discuss the design at each phase of Pre-Construction services, and shall consult with the Owner and Project Architect regarding site use and improvements, and the selection of materials, building systems and equipment.

2.1.2 CONSTRUCTABILITY RECOMMENDATIONS. The CMAR shall participate in the program development, schematic design, design development and construction documents process review sessions with the Owner and Project Architect, and shall provide written recommendations regarding the constructability of proposed building design and systems throughout the Pre-Construction Phase of the Project including:

- a. Construction feasibility, including, but not limited to, analysis of building systems identified in the applicable code and building materials with regard to durability and life cycle cost analysis, availability, cost and constructability;
- b. Actions designed to minimize adverse effects of labor or material shortages;

- c. Time requirements for procurement, installation and construction completion; and
- d. Factors related to construction cost, including estimates of alternative designs or materials, preliminary budgets and possible economies, along with assisting in and performing other Pre-Construction Phase duties and responsibilities as assigned by the Owner from time to time.

2.1.3 COST ESTIMATES. Based on the mutually agreed-upon program, schedule and construction budget requirements, the CMAR, in consultation with the Project Architect, shall prepare, for approval by the Owner, cost estimates at phases identified at section 1.4.8.1 of the projected cost of construction within the Construction Budget with the construction contingency limitations for such phase of the design process.

2.1.4 TESTING AND INSPECTIONS PROCUREMENT ASSISTANCE. Upon the completion of the construction documents, the Architect shall assist the Owner in preparation of the testing and inspection procurement documents provided by the Owner. This shall include, but not be limited to, identifying all inspections that are required per the contract documents, identifying each specification section relating to the test required and identifying the estimated number of tests. The CMAR shall provide to the Owner a construction schedule illustrating durations anticipated to assist the construction materials testing and inspection service companies with bidding and assist the Owner as applicable.

2.1.5 NOTICE TO PROCEED. The initiation of all construction and pre-construction services for the Project by the CMAR is subject to approval of the Owner. No portion of the schematic design, design development and construction documents phases of the CMAR's service set forth herein shall proceed until the CMAR receives a written Notice to Proceed from the Owner for each phase of the design process. Upon receipt of a written Notice to Proceed with each portion of the design phase services from the Owner, the CMAR shall proceed with the provision of the design services for such phase as described herein.

2.1.6 PHASED "FAST TRACK" CONSTRUCTION. The CMAR shall make recommendations to the Owner and Project Architect regarding the phased issuance of the construction documents, including drawings and specifications, to facilitate phased construction of the Work, if such phased construction is appropriate for the Project, taking into consideration such factors as economies, time of performance, availability of labor and materials, and provisions for temporary facilities, and identify and recommend the most cost effective work categories, and provide the methods and means to clearly identify and define cost effective work categories and responsibilities included in the specifications and drawings.

2.2 CONSTRUCTION DOCUMENTS PHASE.

2.2.1 REVIEW OF CONSTRUCTION DOCUMENTS. The CMAR shall complete a quality/coordination review of the completed construction documents, including all specifications

and plan drawings submitted by the Project Architect, and prepare detailed construction cost estimates and value engineering assessments preliminary to the GMP addressing constructability, materials and construction techniques, sequencing of construction, separation of contracts, etc., and recommend action, if required, to maintain the Construction Budget. If any estimate submitted to the Owner exceeds previously approved estimates or the Owner's budget as established by the Project Architect's or CMAR's estimate of the Cost of the Project, the CMAR shall make appropriate adjustments to comply with the approved estimates or budgetary constraints and work in good faith with Owner and Project Architect to conform to said estimates and budget.

2.2.2 COORDINATION OF SUBCONTRACTORS. The CMAR shall review the Construction Documents to ascertain whether the components of the plumbing, electrical and mechanical systems may be constructed without interference with each other, or with the structural or architectural components of the Project, or with existing systems. In the event that conflicts between the systems are discovered, the CMAR shall promptly notify the Owner in writing.

2.2.2.1 The CMAR shall not be entitled to additional compensation for any delay or disruption to the Work arising from any conflict between the mechanical, electrical and plumbing systems with each other, or with the structural or architectural components of the Work, or with existing systems, if such conflicts should have been discovered during the Construction Documents phase by the CMAR through the exercise of reasonable diligence, and the Owner was not informed of such conflicts. This provision is not intended to relieve the Architect of its responsibilities with regard to design or quality control, and relates only to the duty of the CMAR to use reasonable diligence to advise the Owner of conflicts in the Contract Documents during their development.

2.2.3 LONG-LEAD TIME ITEMS. The CMAR shall recommend to the Owner and Project Architect a schedule for procurement of long-lead time items which will constitute part of the Work as required to meet the CPMS for the Project schedule. Long-lead items shall be procured through the competitive bid process in accordance with applicable laws. Approval of payment applications for such stored materials stored off-site shall be conditioned upon submission by the CMAR of bills of sale and applicable insurance or such other procedures satisfactory to the Owner to establish the Owner's title to such materials, or otherwise to protect the Owner's interest, including transportation to the Worksite.

2.3 GENERAL PROVISIONS REGARDING PRE-CONSTRUCTION SERVICES.

2.3.1 EXTENT OF RESPONSIBILITY. The recommendations and advice of the CMAR concerning design alternatives and potential cost savings shall be subject to the review and written approval of the Project Architect, the Owner, and any professional consultants retained by the Owner or Project Team. The CMAR shall use reasonable skill and judgment in ascertaining that the drawings and specifications are in accordance with applicable laws, statutes, ordinances, building codes, rules and regulations; and, if the CMAR recognizes or reasonably should recognize that portions of the drawings and specifications are at variance with applicable laws, statutes, ordinances, building codes or regulations or in violation thereof, the CMAR shall promptly notify the Project

Architect and Owner in writing of same.

2.4 SUBMISSION OF GUARANTEED MAXIMUM PRICE (GMP) PROPOSAL.

2.4.1 TIME OF SUBMISSION OF GMP. The CMAR shall submit its GMP proposal for the Project as provided in the definition section of the Agreement.

2.4.2 COMPONENTS OF GUARANTEED MAXIMUM PRICE. The CMAR shall include with the GMP proposal a written statement of its basis on the forms provided by the Owner which shall include:

2.4.2.1 A list of the Drawings and Specifications, including all addenda thereto and the Conditions of the Agreement, which were used in preparation of the GMP proposal.

2.4.2.2 A Construction Contingency for additional cost of **no more than** that provided at section 1.4.8.1 above.

2.4.2.3 A list of allowances and a statement of their basis.

2.4.2.4 A list of the clarifications and assumptions made by the CMAR in the preparation of the GMP proposal to supplement the information contained in the Drawings and Specifications.

2.4.2.5 The proposed GMP, including a statement of the estimated cost organized by applicable work codes as defined by the Architect, allowances, Construction Contingency, and other items that comprise the GMP and the general conditions items to be reimbursed for the Project and the proposed General Conditions Costs outlined in the Contract Documents which shall be available to the CMAR for payment of all General Conditions Costs for the Project. The submitted GMP shall include all bids that were provided to the CMAR in order of lowest to highest bid per bid package. The GMP shall also, in accordance with all Wyoming Statutes including Wyo. Stat. § 16-6-707(c), include a list of subcontractors who will be awarded each component of the Work comprising the value of the GMP, identifying which subcontractors are Wyoming resident contractors or subcontractors, and those which are non-resident contractors and further illustrating that no less than seventy percent (70%) of the Work comprising the value of the GMP will be awarded to Wyoming resident subcontractors, as defined by Wyoming law.

2.4.2.6 The Completion Time for Work including:

2.4.2.6.1 Date of Substantial Completion as set forth on the CPMS for the Project upon which the proposed GMP is based, said CPMS to include a schedule of the Construction Documents' issuance dates upon which the date of Substantial Completion is based; and

2.4.2.6.2 The Date of Final Completion as set forth on the CPMS for the Project upon which the proposed GMP is based, which date will be acceptable to the Owner.

2.4.2.7 The GMP proposal may not be based in any part on any subcontract or material supply contract which would require the Owner to compensate the CMAR on other than a maximum cost basis.

2.4.3 REVIEW OF PROPOSED GMP. The CMAR shall meet with the Owner and Project Architect to review the GMP proposal and the written statement of its basis. In the event that the Owner or Project Architect discover any inconsistencies or inaccuracies in the information presented, they shall promptly notify the CMAR who shall make appropriate adjustments to the GMP proposal, its basis or both.

2.4.4 OWNER NEGOTIATION AND ACCEPTANCE OR REJECTION OF GMP. The Owner in its sole discretion shall accept or reject the GMP proposal for the Project by written action of the Owner no more than thirty (30) days after the receipt of the GMP proposal by the Owner.

2.4.4.1 The GMP proposal for the Project shall not be effective without written acceptance by the Owner. If the Owner rejects the CMAR's GMP proposal for the Project, the Owner, Project Architect and CMAR may again review the GMP and the written statement of its basis, and seek to negotiate a GMP the Owner will accept, but Owner has no obligation of any kind or nature to review or accept any proposals from CMAR. As part of such negotiations, the CMAR shall make appropriate recommendations to the Owner and Project Architect for cost reductions, including, but not limited to, substitution of materials or revisions/alterations to the Construction Documents to bring the Project within the Construction Budget that shall not delete necessary components of the Project or materially reduce any aquatic programming requirements of the Owner.

2.4.4.2 If agreement is reached on the GMP between the Owner and the CMAR, the CMAR shall accept the GMP by executing the Owner and CMAR GMP Agreement form provided by Owner, and upon such execution the Owner and CMAR GMP Agreement shall be presented to the Owner for approval; such GMP shall not be effective until formal action approving the GMP has been taken by the Owner in accordance with applicable law and Owner policies. If agreement on a GMP is not reached within thirty (30) days of the date of the Owner's written rejection of the GMP proposed by the CMAR, this Agreement shall be terminated pursuant to the provisions of section 9.1.

2.4.5 PRE-GMP GENERAL CONDITIONS COSTS. Prior to the Owner's acceptance of the CMAR's GMP proposal for an individual Project and issuance of a Notice to Proceed, the CMAR shall not incur any cost to be paid by Owner as part of the GMP, except as the Owner may specifically authorize in writing.

2.4.6 AMENDMENT OF PROJECT SCOPE DOCUMENT TO REFLECT GMP. Upon Owner's approval of the GMP, the Owner and the CMAR shall enter into an agreement which shall specify the GMP and its basis, which agreement shall be set forth as an amendment entitled "Owner and

CMAR Guaranteed Maximum Price (GMP) Agreement,” incorporating therein the GMP Proposal submitted by the CMAR, with any amendments thereto during the negotiations process. The GMP shall be subject to additions and deductions only by a change in the Scope of the Work approved in writing by the Owner.

2.4.6.1 PROJECTED COST OF THE PROJECT. For purposes of calculating any adjustment of the CMAR’s Post-GMP compensation for basic services, the “projected” Cost of the Project is that set forth on the “Scope of Project” detailing project scope, project schedule, and project construction budget for the Work, Exhibit A attached hereto.

2.4.6.2 SAVINGS ON GMP. Should the CMAR complete the Project for less than the GMP, the remaining funds shall be credited to the Owner as a deduction from the GMP; and the CMAR shall also return to the Owner all unused funds from any contingency account as a deduction from the GMP. The CMAR shall not participate in any savings to the Project; all savings shall be credited to the Owner, provided that savings within the CMAR fee described in Article 4 and General Conditions Costs Allocation described in Article 5 shall be the sole property of the CMAR.

2.4.6.3 GMP EXCEEDED. If the GMP is exceeded for any reason, the CMAR shall be solely responsible for any and all payments, costs, fees, or other liabilities from its own resources with no contribution or liability of any kind or nature by or from the owner for the difference between the final price and the GMP as adjusted by change orders, if any.

2.4.7 REVISION OF CONSTRUCTION DOCUMENTS PER GMP. The Owner shall authorize and cause the Project Architect to revise the Drawings and Specifications to the extent necessary to reflect the agreed-upon allowances, assumptions and clarifications contained in the Contract Documents, for the Project upon written acceptance of the GMP by Owner. Such revised Drawings and Specifications shall be furnished to the CMAR in accordance with the CPMS schedule agreed to by the Owner, Project Architect and CMAR. The CMAR shall promptly notify the Project Architect and Owner if such revised Drawings and Specifications are inconsistent with the agreed-upon allowances, assumptions and clarifications, and the Project Team shall in good faith endeavor to remedy any such issues.

2.4.8 APPLICABLE TAXES. The GMP shall include in the Cost of the Project any applicable taxes.

2.4.9 The CMAR shall diligently prosecute and achieve Substantial Completion and Final Completion of the entire Work of the Project as provided in the Owner and CMAR Guaranteed Maximum Price (GMP) Agreement and as also set forth herein.

2.5 CONSTRUCTION PHASE.

2.5.1 CMAR ASSUMPTION OF PRIMARY RESPONSIBILITY FOR THE WORK. The CMAR shall have primary responsibility for the overall administration of the construction contracts on

behalf of the Owner, and shall provide a full field staff throughout construction for the purpose of managing, inspecting, scheduling, and coordinating the subcontractors; and shall monitor the progress, performance, quality and contract compliance of the subcontractors' activities.

2.5.2 COMMENCEMENT OF THE WORK. The Construction Phase shall commence when the Owner accepts the CMAR's GMP and the CPMS proposal, and a Notice to Proceed is issued in writing by the Owner in accordance with this Agreement.

2.5.3 ADMINISTRATION.

2.5.3.1 ACTUAL PERFORMANCE OF THE WORK THROUGH MULTIPLE SUBCONTRACTS. All of the Work on the Project shall be performed under subcontracts (hereinafter referred to as "Subcontracts"), except those performed by the CMAR. The CMAR shall advertise for competitive bids for each Subcontract and, as further outlined above, the CMAR shall award such Subcontracts in accordance with all state, federal, and local laws, including statutes, ordinances, codes, rules, and regulations. CMAR acknowledges that the Owner has established a regular manner for advertising for competitive bids for this Project which is a part of the Contract Documents for the Project. The regular manner referenced herein and established by the Owner for advertising for such competitive bids shall be followed and adhered to by the CMAR. The CMAR shall obtain the competitive bids from Subcontractors and from suppliers of materials or equipment fabricated to a special design for the Work. As part of the process of obtaining competitive bids for the Work, the CMAR shall perform the following responsibilities:

2.5.3.2 PREQUALIFICATION OF SUBCONTRACTORS. If, upon obtaining the Owner's written consent, the CMAR elects to perform a prequalification process prior to the development of bid packages for any portions of the work, the CMAR shall notify the Owner of the results of any prequalification process. Prior to publically releasing the results, the CMAR shall allow the Owner a reasonable opportunity to review and comment and shall not release such results until receipt of written approval by the Owner to do so.

2.5.3.3 CMAR DEVELOPMENT OF BID PACKAGES. The CMAR shall develop bid packages and solicit Subcontractor interest in the Project with emphasis on the development of bid packages that will encourage participation by local contractors.

2.5.3.4 ADVERTISEMENT FOR COMPETITIVE BIDS. As the Owner's representative, advertise for competitive bids for all portions of the Work pursuant to the following bid process, to-wit:

2.5.3.4.1 All contracts for work related to building construction, remodeling or repair or site improvements will be bid in accordance with state statutes in the regular manner established by the Owner as set forth above, including all provisions of Article 1 of this Agreement. All other contracts will be handled under current Owner policies and regulations to be provided to CMAR by Owner.

2.5.3.4.1.1 Building construction, remodeling or repair or site improvement projects should be combined to the extent possible.

2.5.3.4.1.2 As prescribed in this section. the regular manner established by the Owner for advertising for bids and Proposals for all contracts for the construction of all improvements and work listed for the Project, including the provisions of Article 1 of this Agreement, consists of: (1) preparing invitations for bids and proposals and proposed contract documents; (2) publishing public notice which includes the general nature of the proposed work, fixes the hour, date, time and location of the Owner offices where such bids and proposals shall close, or be received or opened, and provides the name and telephone number of a person to be contacted by anyone interested in submitting a bid and proposal to contract for such work in the Wyoming Tribune-Eagle, and construction industry "plan rooms" including the Wyoming Plan Service, at least thirty (30) days prior to bid and proposal opening and providing other public notice; (3) establishing evaluation criteria, interview and selection procedures which may include consultations with one or more bidders according to the requirements of any federal, state, and local laws applicable; and (4) preparing, signing, executing and delivering all documents, and taking or causing to be taken all other necessary or appropriate action to complete the bidding and proposal process for each contract; and that the above shall and is hereby determined to be the regular manner established by the Owner for advertising for bids and proposals for all contracts for the Project and shall be strictly adhered to by CMAR in performing its obligations under this Agreement.

2.5.3.4.1.3 The above regular manner established by the Owner relates to and governs all forms of construction, remodeling, or repair and all Contractors and Subcontractors, including the various forms of "CMAR as Constructor" (CMAR) and any subcontracts thereunder.

2.5.3.4.2 In implementing the foregoing bid process, the CMAR shall be generally responsible for, including, but not limited to:

2.5.3.4.2.1 SCHEDULE FOR LETTING BIDS. Establish a schedule for letting bids for each portion of the Work pursuant to the Critical Path Method Schedule (CPMS) established for the Project.

2.5.3.4.2.2 DATES FOR ADVERTISEMENT OF BIDS. Establish dates for advertising for and opening of bids.

2.5.3.4.2.3 LOCATION OF BID OPENING AND READING AND AVAILABILITY OF BIDS. All bids will be opened at the Owner's offices or other site designated by the Owner, and shall be read aloud in public to those present. All submitted bids shall be available for public inspection thereafter during the normal business hours for the Owner's administrative offices.

2.5.3.4.2.4 PUBLICATION OF BIDS. Arrange for publication of advertisement for bids, which publication shall fix the day and hour upon which the bids shall be returned or received, and the date, hour and location the bids will be opened, and that the bids shall be opened in the presence of the

bidders, or representatives of the bidders, when the hour is reached for the bids to close.

2.5.3.4.2.5 REPRODUCTION AND DISTRIBUTION OF CONSTRUCTION DOCUMENTS. Reproduce and distribute the Plans and Specifications for the portion of the Work being let for bids to all prospective bidders.

2.5.3.4.2.5.1 The CMAR shall include the following specific notices in the information to proposers:

2.5.3.4.2.5.1.1 The successful bidder's responsibility to provide workers' compensation insurance in accordance with Wyo. Stat. §§ 27-14-206 and 27-14-207.

2.5.3.4.2.5.1.2 The notice to all bidders that the CMAR will comply with Wyo. Stat. § 16-6-106, the Wyoming materials preference in requests for bids and proposals which provides: "All requests for bids and proposals for materials, supplies, agricultural products, equipment, machinery and provisions for the construction, maintenance and upkeep of every state, county, municipal, community college Owner or school Owner institution shall contain the words 'preference is hereby given to materials, supplies, agricultural products, equipment, machinery and provisions produced, manufactured or grown in Wyoming, or supplied by a resident of the state, quality being equal to articles offered by the competitors outside of the state.'"

2.5.3.4.2.5.1.3 The notice regarding trench and shoring safety required by applicable state and federal codes and regulations.

2.5.3.4.2.5.2 Nothing herein shall preclude the CMAR from including other notices in the Construction Documents required or allowed by law.

2.5.3.4.2.6 PRE-BID CONFERENCES. Be in attendance at and conduct pre-bid conferences as necessary with firms interested in submitting bids as Subcontractors following the CPMS for the Project.

2.5.3.4.2.7 RECEIPT OF INFORMATION FROM BIDDERS. Confirm with all prospective Subcontract bidders that they will provide all information requested of bidders on the Work required by the Owner in the bid documents.

2.5.3.4.2.8 PRESENCE AT BID OPENINGS. Be present at all bid openings.

2.5.3.4.2.9 MINIMUM NUMBER OF BIDS AND EVALUATION OF BIDS. For a bid package to proceed to award there must be not less than three (3) bona fide bids submitted, unless such requirement is waived in writing for good cause by the Owner. "Good cause" shall be determined on a case-by-case basis in consideration of the receipt of and competitive nature of the bids received and the progress of the Work. In the absence of the Owner's waiver of the requirements of this

section, should the CMAR receive less than three (3) bids for a particular bid package, the CMAR shall not open the bid packages until they have remarketed the bid package and received no less than three (3) bona fide bids. After the CMAR has received a minimum of three (3) bids per bid package, it shall in consultation with the Owner and Project Architect, evaluate each bid and bidder, and make written recommendations to the Owner regarding which bids will be accepted as the lowest responsible bid for portions of the Work being bid. The Owner shall then approve or reject in writing any and all bids unless this requirement is waived in writing by the Owner. If all bids are rejected, the remarketing provisions of this section shall apply.

2.5.3.4.2.9.1 LOW RESPONSIBLE BID. Subcontracts shall be awarded to the lowest responsible bidders in compliance with all applicable laws.

2.5.3.4.2.9.2 The CMAR shall provide to each submitting bidder upon request a summary of the bids and notice of the bid determined to be the lowest responsible bidder within ten (10) business days of the determination by the CMAR.

2.5.3.5 BIDDING BY CMAR. Should the CMAR or a construction contractor in any way affiliated with the CMAR submit a bid for a portion of the Work being let for bids, the same procedures and processes as required of all bidders shall be followed, except that any bid by the CMAR or a construction contractor in any way affiliated with the CMAR must be submitted twenty-four (24) hours before all other bids are due to be submitted, and the bid of the CMAR or a construction contractor affiliated in any way with the CMAR may only be accepted if such bid is the lowest responsible dollar amount bid.

2.5.3.6 NON-ACCEPTANCE OF LOW BID RECOMMENDED BY CMAR TO OWNER. If the GMP has been established and a specific bidder among those whose bids are received through the competitive bidding process (1) is recommended to or approved by the Owner by the CMAR as the lowest responsible bid; (2) is qualified to perform that portion of the Work; (3) has submitted a bid which conforms to the requirements of the Contract Documents without reservations or exceptions, but the Owner requires that another bid be accepted, then the CMAR may request that a change in the Work be issued to adjust the Critical Path Method Schedule and the GMP by the difference between the bid of the person or entity recommended to the Owner by the CMAR and the amount of the Subcontract or other agreement actually signed with the person or entity designated by the Owner. Owner shall use good faiths efforts to address such a request but shall not be legally obligated to honor said request.

2.5.3.7 CONFORMANCE BY MATERIAL SUPPLIERS. Subcontracts and agreements with suppliers furnishing materials or equipment fabricated to a special design shall conform to the bidding provisions outlined in this Agreement and the Contract Documents.

2.5.3.8 REBIDDING OF WORK. In cooperation with the Project Architect and Owner, the CMAR shall re-bid any portion of the Work for which no satisfactory bid has been received.

2.5.3.9 BONDS. The CMAR shall comply with all applicable laws regarding bonding and may require bidders to submit bid bonds or other bid security, and confirmation of the bidder's ability to obtain payment and performance bonds and certificates of insurance acceptable to the CMAR and Owner as a prerequisite to bidding on portions of the Work to be performed by Subcontract.

2.6 CONTRACTS OF SUBCONTRACTORS AND PAYMENT TO CMAR FOR SUBCONTRACTS. All Subcontractor contracts shall be between the Subcontractor as a party thereto and the CMAR; except in the event the CMAR is awarded the contract, such portion of the Work of the Project shall be treated as self-performed work by the CMAR; the CMAR's compensation for such Work shall be treated only as a Cost of the Project and shall be added to this Agreement by addendum separate from the CMAR fee paid under Article 4 hereof, and based upon the amount of the bid submitted by the CMAR for such Work upon approval in writing by the Owner. Payment by the Owner to the CMAR for the cost of each subcontract shall be made pursuant to Article 6 hereof.

2.6.1 ESTABLISHMENT OF PROJECT SCHEDULE. The CMAR shall establish a Project schedule consistent with the CPMS schedule, and inform all Subcontractors of the Project schedule and require all Subcontractors to comply therewith.

2.6.2 PROGRESS MEETINGS WITH SUBCONTRACTORS. The CMAR shall schedule and conduct progress meetings, on a bi-weekly basis or more often as determined necessary by the Owner, Project Architect or CMAR, at which the Owner, Project Architect, CMAR and appropriate CMAR Subcontractors can discuss the status of the Work. The CMAR shall prepare and promptly distribute meeting minutes. The CMAR shall provide periodic presentations updating the progress, quality and status of the Work of the Project to the Owner at the Owner's request at no additional cost to the Project.

2.6.2.1 CORRECTIVE ACTION PLANS. Progress of the work shall be reported at said meetings with reference to the CPMS construction schedule. The CMAR shall submit to the Owner and Project Architect with each periodic application for payment for each Subcontractor a copy of the progress schedule showing all modifications required, and shall take whatever corrective action is necessary to assure that the project completion schedule is met at no additional cost to Owner, except as allowed herein.

2.6.2.2 SUBCONTRACTOR RECOVERY PLAN. In the event that a Subcontractor shall fall behind schedule at any time, the CMAR shall develop with that Subcontractor a recovery plan and deliver the recovery plan to the Owner and Project Architect with a recovery schedule and a program describing the additional manpower, overtime, material expediting, re-sequencing of the Work and other steps Subcontractor shall take to meet the requirements of the subcontract. No approval or consent by the Owner of any plan for re-sequencing or acceleration of the Work submitted by a Subcontractor shall constitute a waiver by Owner of any damages or losses which Owner may suffer by reason of such re-sequencing or the failure of Subcontractor to meet the Substantial Completion Date or the Final Completion Date.

2.6.3 MONTHLY REPORTS/DAILY LOG. The CMAR shall provide monthly written reports to the Owner and Project Architect on the progress of the entire Work. The CMAR shall maintain a daily log containing a record of weather, Subcontractors working on the site, number of workers, Work accomplished, problems encountered and other similar relevant data as the Owner may reasonably require. The log shall be available to the Owner and Project Architect at any time during work hours, and shall be presented for discussion at the meetings referenced in section 2.6.2 above.

2.6.4 COST CONTROL SYSTEM. The CMAR shall develop a system of cost control for the Work including regular monitoring of actual costs for activities in progress. The CMAR shall identify variances between actual and estimated costs and report the variances to the Owner and Project Architect at regular intervals. Cost control reports shall be included as part of the monthly written report to be provided by the CMAR pursuant to section 2.6.3 of this Agreement.

2.6.5 ACCOUNTING AND ACCOUNTING RECORDS. The CMAR shall maintain a system of accounting consistent with generally accepted accounting principles. The CMAR shall preserve all accounting and other financial or contractual records for a period of four (4) years after final acceptance of the Work. The Owner shall have access to all such accounting records at any time during the performance of the Work upon written request and for a period of four (4) years after final acceptance of the Work.

2.6.6 QUALITY CONTROL PROCEDURES. The CMAR shall develop and maintain a program, which shall be approved by and acceptable to the Owner and the Project Architect, to assure quality control of the construction. The CMAR shall supervise the Work of all Subcontractors, providing instructions to each when its Work does not conform to the requirements of the drawings and specifications of the construction documents, and continue to manage each Subcontractor to ensure that corrections are made in a timely manner so as not to affect the progress of the Work. Should any disagreement occur between the CMAR and the Project Architect or Owner regarding the acceptability of Work and conformance with the requirements of the Drawings and Specifications, the Project Architect and/or Owner shall be the final judge of performance and acceptability.

2.6.7 CONFIRMATION OF OWNER PROVIDED INFORMATION. CMAR shall use reasonable care to confirm the accuracy of such information relating to the performance of the Work of the Project provided by the Owner, and shall advise the Owner in writing of any variance between the information provided and the actual conditions and shall be responsible for any cost to the Project resulting from a failure to exercise such reasonable care. Notwithstanding the preceding sentences and the delivery of surveys or other documents and reports by Owner, CMAR shall perform all work in a reasonable manner and take whatever precautions are necessary so as to avoid damaging any utility lines, cables, pipes, or pipelines on the Property, and any such liability resulting from any such damage shall not be the responsibility of the Owner.

2.6.8 LINES OF AUTHORITY. The CMAR shall establish on-site organization and lines of authority in order to carry out the overall plan of construction. The CMAR shall identify in writing to Owner and Project Architect an on-site staff member to represent the CMAR on a daily basis with

express authority to negotiate and execute Change Orders or other contract modifications on behalf of the CMAR, subject to the procedures of section 2.6.10. The CMAR shall make available such executive personnel as necessary to execute Change Orders or other contract modifications on behalf of the CMAR so as not to delay the progress of the Work, and any such delays shall not be the responsibility of Owner.

2.6.9 MANAGEMENT COORDINATION.

2.6.9.1 PROCEDURES FOR COORDINATION. The CMAR shall establish procedures for coordination among the Owner, Project Architect, Subcontractors and CMAR with respect to all aspects of the Work. The CMAR shall require of the various Subcontractors coordination drawings as may be necessary to properly coordinate the Work among the Subcontractors. In coordination with the Project Architect, the CMAR shall establish and implement procedures for tracking and expediting the processing of shop drawings and samples as required by the General Conditions of the Agreement.

2.6.9.2 ON-SITE STAFFING. The CMAR shall maintain exclusively for the Project a competent, duly licensed and certified full-time staff at the Project Site to coordinate and direct the Work and progress of the Subcontractors. All of the CMAR's on-site management and supervisory personnel shall be consistent with the CMAR's interview presentation and shall not be removed or replaced without the Owner's consent, which consent will not be unreasonably withheld. The Owner shall have the right to direct the CMAR to remove or replace any on-site personnel whose performance becomes unsatisfactory to the Owner. In such event, the CMAR shall promptly replace such personnel without consideration of any additional compensation for the replacement. Such on-site staffing shall include a Project Manager and an on-site Superintendent who shall perform the duties set forth below.

2.6.9.2.1 PROJECT MANAGER. CMAR's project manager, while not required to be present full-time at the site, shall remain assigned to this Work, and be available on an as-needed basis throughout the course of the Work.

2.6.9.2.2 ON-SITE SUPERINTENDENT. The CMAR shall have a Superintendent on the site of the Work at all times the Work is being performed. CMAR's Superintendent shall be present full-time on the site upon commencement of the Work, and shall remain assigned to this Work, and present on the site, throughout the course of the Work until items requiring completion or correction, identified at Substantial Completion have been completed or corrected. From Substantial Completion until Final Completion, the Superintendent shall be on the site as necessary to ensure that Final Completion occurs within the time specified. The CMAR's Superintendent's services shall include: (1) review all stages of construction to become intimately familiar with the progress and quality of the completed Work and to determine in general if the Work is being performed in a manner indicating that the Work, when completed, will be in accordance with the Contract Documents; (2) be responsible to assure that the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work performed by the

Subcontractors are in compliance with the Contract Documents and all local, state and federal regulations; (3) make continuous on-site inspections to check quality or quantity of the Work; and (4) keep the Owner informed of progress of the Work, and will endeavor to guard the Owner against defects and deficiencies in the Work.

2.6.9.2.3 EVALUATION AND SUPERVISION OF SUBCONTRACTORS. The CMAR shall determine the adequacy of Subcontractors personnel and equipment, and the availability of materials and supplies to meet the CPMS. In consultation with the Owner and Project Architect, the CMAR shall take necessary corrective actions when requirements of a Subcontract or a Subcontractor's schedule are not being met at no cost to the Owner.

2.6.10 CHANGE ORDERS. The CMAR shall develop and implement a system for the preparation, review and processing of Change Orders subject to Owner approval. Without assuming any of the Project Architect's responsibilities for design, the CMAR shall recommend necessary or desirable changes to the Owner and the Project Architect, and shall review requests for changes and submit recommendations to the Owner and Project Architect.

2.6.10.1 COST ESTIMATES OF CHANGES IN THE WORK. Upon request by the Owner or Project Architect, the CMAR shall promptly prepare and submit estimates of probable cost for changes proposed in the Work, including similar estimates from the Subcontractors. If directed by the Owner, the CMAR shall promptly secure formal written Change Order Proposals from a Subcontractor.

2.6.11 SAFETY AND SECURITY OF JOB SITE. The CMAR is solely responsible for the security and safety of the Project and the Project premises. The CMAR shall make provisions for Project security to protect the Project site and materials stored off site against theft, vandalism, fire and accidents as required by job and location conditions, and protect the staff, patrons and the public, including, but not limited to, the job site security requirements and protocols. Mobile equipment and operable equipment at the site and hazardous parts of new construction subject to mischief shall be locked or otherwise made inoperable or protected when unattended.

2.6.12 SUBSTANTIAL AND FINAL COMPLETION.

2.6.12.1 SUBSTANTIAL COMPLETION. Substantial Completion is the stage in the progress of the Work when the Project Architect in its sole discretion has determined that the Work or designated portion thereof is sufficiently complete in accordance with the Contract Documents, including substantial completion of all punch list items to be performed by the Subcontractors so the Owner can occupy the Project premises for the purpose of performing its preparatory tasks to make the Project premises suitable for its intended use as a public safety center. Such preparatory tasks to be performed by the Owner include, but are not limited to, installation of temperature controls, installation of movable equipment, performance of custodial work and facility opening "start-up" testing. All Project systems included in the Work or designated portion thereof have been successfully tested and are fully operational; all required governmental inspections and certifications

required of the Work have been made, approved and posted; designated initial instruction of Owner's personnel in the operation of Project systems has been completed; and all the required finishes set out in the Construction Documents are in place. The only remaining Work shall be minor in nature so that the Owner can occupy the Project premises or the applicable portion of the Project premises for all of its intended purposes on that date; and the completion of the Work by the CMAR will not materially interfere with or hamper Owner's normal operations or other intended use. When Substantial Completion of the Work is achieved, and following preliminary notification by CMAR and determination of the same by the Project Architect, the Project Architect shall prepare and deliver to the Owner and CMAR a Certificate of Substantial Completion that shall establish the date of Substantial Completion and the respective responsibilities of the Owner and CMAR as more particularly described at Article 6. As a further condition of a determination of Substantial Completion, the CMAR shall certify that all remaining Work shall be completed within thirty (30) days or the CMAR shall provide a schedule for Final Completion approved in writing by the Owner; the CMAR shall make such certification by signing the Project Architect's Substantial Completion Certificate on a form provided by the Owner.

2.6.12.2 FINAL COMPLETION. The CMAR shall achieve Final Completion of the Work of the Project by not later than thirty (30) days following the issuance of the Certificate of Substantial Completion or the date provided in the CMAR's schedule for Final Completion approved in writing by the Owner. The date of Final Completion is the date certified by the Project Architect that the Project Architect finds that the Work of the Project, including the work of all of the CMAR's Subcontractors, is acceptable under the Contract Documents and the CMAR's contractual obligations are fully performed. The Project Architect's certification of Final Completion shall occur upon receipt by the Project Architect and Owner of the CMAR's written notice that the Work is ready for final inspection and acceptance. The Project Architect's final Certificate for Payment will constitute a further representation that conditions set forth in Article 6 of this Agreement as precedent to the CMAR being entitled to final payment have been fulfilled.

2.7 PROFESSIONAL SERVICES. The CMAR shall not be required to provide professional services which constitute the practice of architecture or engineering unless such services are specifically required by the Contract Documents for a portion of the Work or unless the CMAR has specifically agreed in writing to provide such services. In such event, the CMAR shall cause such services to be performed by appropriately licensed professionals.

2.8 UNSAFE MATERIALS. If reasonable precautions will be inadequate to prevent foreseeable bodily injury or death to persons resulting from a material or substance encountered but not created on the site by the CMAR, the CMAR shall, upon recognizing the condition, immediately stop Work in the affected area and report the condition to the Owner and Project Architect immediately, either orally or in writing, and if conveyed orally, said report shall be confirmed in writing within one (1) working day. The CMAR shall act to prevent threatened damage, injury or loss.

ARTICLE 3 OWNER'S RESPONSIBILITIES

3.1 INFORMATION AND SERVICES.

3.1.1 PROJECT INFORMATION. The Owner shall provide full information in a timely manner regarding the requirements of the Project, including a program which sets forth the Owner's objectives, constraints and criteria, including space requirements and relationships, flexibility and expandability requirements, special equipment and systems, and site requirements. The Owner shall establish and update a Construction Budget for the Project, based on consultation with the CMAR and Project Architect, which shall include contingencies for changes in the Work of the Project and other costs which are the responsibility of the Owner as expressly provided herein.

3.1.2 STRUCTURAL AND ENVIRONMENTAL TESTS, SURVEYS AND REPORTS. In the Pre-Construction Phase, the Owner shall furnish the reports, surveys, drawings and tests described in sections 3.1.2.1 through 3.1.2.5 with reasonable promptness and at the Owner's expense. Such documents shall be provided for information only and are not warranted or represented to show the conditions at the Project site accurately.

3.1.2.1 Reports, surveys, drawings and tests concerning the conditions of the Project site which are required by law. If the CMAR requests additional testing in excess of the budgeted amount for testing in the Owner's Program Statement prepared by the Project Architect, such testing must receive prior written approval from the Owner.

3.1.2.2 Surveys describing physical characteristics, legal limitations and utility locations for the site of the Project, and a written legal description of the site. The surveys and legal information shall include, as applicable, grades and lines of streets, alleys, pavement and adjoining property and structures; adjacent drainage; rights-of-way, restrictions, easements, encroachments, zoning, deed restrictions, boundaries and contours of the site; locations, dimensions and necessary data pertaining to existing buildings, other improvements and trees; and information concerning available utility services and lines, both public and private, above and below grade, including inverts and depths. All information on the survey shall be referenced to a Project benchmark.

3.1.2.3 The services of geotechnical engineers when such services are requested by the CMAR and approved by the Owner, if not already provided prior to commencement of the Work by the Owner. Such services reasonably required by the scope of the Work of the Project may include, but are not limited to, test borings, test pits, determinations of soil bearing values, percolation tests, valuations of hazardous materials, ground corrosion and resistivity tests, including necessary operations for anticipating subsoil conditions with reports and appropriate professional recommendations.

3.1.2.4 Structural, mechanical, chemical, air and water pollution tests, tests for hazardous materials, and other laboratory and environmental tests, inspections and reports which are required by law.

3.1.2.5 The services of other consultants requested by the CMAR when such services are reasonably required by the scope of the Work of the Project and are agreed to in writing by the Owner.

3.2 OWNER'S DESIGNATED REPRESENTATIVES. The Owner shall designate one authorized representative respectively to act on the behalf of each entity in the day-to-day administration of the Project.

3.3 PROJECT ARCHITECT. The CMAR's services shall be provided in conjunction with the services of a Project Architect. The terms of the agreement between the Owner and the Project Architect shall be available for inspection by the CMAR upon request.

3.4 LEGAL REQUIREMENTS. The Owner shall determine and advise the Project Architect and CMAR of any special legal requirements relating specifically to the Project which differ from those generally applicable to public works construction in the State of Wyoming.

3.5 INSPECTION AND TESTING. The Owner may provide or contract for, independently of the CMAR, inspection services, the testing of construction materials engineering, and verification testing services necessary for acceptance of the Work of the Project by the Owner.

ARTICLE 4 COMPENSATION FOR CONSTRUCTION PHASE SERVICES

4.1 COMPENSATION.

4.1.1 COMPENSATION FOR COMPLETION OF THE PROJECT. The Owner and CMAR agree that the Owner shall pay the CMAR, pursuant to the terms of the Contract Documents and provisions of Article 6 of the Agreement, the following amounts under the following terms and conditions:

4.1.1.1 GENERAL CONDITIONS COSTS. The General Conditions Costs shall be paid as included within the applicable provisions of the Contract Documents.

4.1.1.2 CMAR'S COMPENSATION FOR PRE-CONSTRUCTION AND CONSTRUCTION PHASE SERVICES. The CMAR's Compensation for services shall be divided for purposes of this Agreement between Pre-Construction Phase services and Construction Phase services, with compensation for such services being determined as follows:

4.1.1.2.1 PRE-CONSTRUCTION SERVICE FEE COMPENSATION. The CMAR's fee for the Pre-Construction services pursuant to sections 2.1, 2.2 and 2.3 of this Agreement and the Contract Documents shall be the sum of Forty-Four Thousand Two Hundred Eighty Dollars (\$44,280.00). Payment of the CMAR'S Pre-Construction Service Fee (PCS Fee) upon receipt of a Notice to Proceed from the Owner shall be allowed to bill up to one hundred percent (100%) of the

pre-construction services.

4.1.1.3 CONSTRUCTION PHASE COMPENSATION.

4.1.1.3.1 CONSTRUCTION SERVICE FEE COMPENSATION. The CMAR's stipulated maximum fee for Construction Phase services pursuant to this Agreement shall be the sum of One Million Three Hundred Twenty Thousand Nine Hundred Twenty-One Dollars (\$1,320,921.00). Payment of the CMAR's Construction Service Fee (CS Fee) shall be based upon percentage of the total Cost of the Project completed at the time of each submitted periodic invoice for services to be paid pursuant to the provisions of Article 6 of the Agreement. The CS Fee shall be subject to the retainage requirements of Wyo. Stat. § 16-6-702.

4.1.1.4 ADJUSTMENT OF COMPENSATION FOR BASIC SERVICES FOR CHANGES IN THE WORK AND CPMS SCHEDULE. Adjustments to the GMP and the Critical Path Method Schedule on account of changes in the Work for the Project and each of them subsequent to the execution of the Agreement may be the basis for an adjustment of the CMAR's Compensation for Basic Services upon Owner's written approval.

ARTICLE 5 GENERAL CONDITIONS COSTS FOR CONSTRUCTION PHASE

5.1 GENERAL CONDITIONS COSTS. "General Conditions Costs" by the Owner to the CMAR shall be determined as set forth in the Contract Documents.

5.2 DISCOUNTS, REBATES AND REFUNDS. CMAR shall take advantage of all available discounts, rebates and refunds for supplies, materials and equipment connected with the Work and which conform to the Contract Documents. Trade discounts, rebates, refunds and amounts received from sales of surplus materials and equipment shall accrue to the Owner, and the CMAR shall make provisions so that they can be secured.

5.3 ACCOUNTING RECORDS. The CMAR shall keep full and detailed accounts and exercise such controls as may be necessary for proper financial management under this Agreement. The accounting and control systems shall be satisfactory to the Owner. The Owner, the Owner's accountants, or other representatives, shall be afforded access to the CMAR's records, books, correspondence, instructions, drawings, receipts, Subcontracts, purchase orders, vouchers, memoranda and other data relating to this Project shall be preserved by the CMAR for a period of four (4) years after final payment or for such longer period as may be required by law.

ARTICLE 6
PAYMENT OF CONSTRUCTION COSTS

6.1 PROGRESS PAYMENTS.

6.1.1 APPLICATIONS. The CMAR shall submit to the Owner and, if directed, Project Architect, a periodic application for payment. The application for payment shall consist of the Cost of the Project performed up to the last day of the invoiced period, and shall include (1) the cost of all subcontracted work performed or materials provided to date including materials suitably stored on the Worksite or at other locations approved by the Owner; (2) the cost of PCS fee or CS fee earned to date, as applicable, and paid per the terms of Article 4. Approval of payment applications for such materials stored off-site shall be conditioned upon submission by the CMAR of bills of sale and applicable insurance or such other procedures satisfactory to the Owner to establish the Owner's title to such materials, or otherwise to protect the Owner's interest, including transportation to the Worksite. Prior to submission of the next application for payment, the CMAR shall furnish to the Owner a statement accounting for the disbursement of funds received under the previous application. The extent of such statement shall be as agreed upon between the Owner and the CMAR. Payment shall be subject to the retainage requirements of Wyo. Stat. § 16-6-702.

6.1.2 Promptly after receipt of each periodic application for payment, the Owner shall give written notice to the CMAR of the Owner's acceptance or rejection, in whole or in part, of such application for payment. The Owner shall pay directly to the CMAR the appropriate amount for which application for payment is made, less amounts previously paid by the Owner. If such application is rejected in whole or in part, the Owner shall indicate the reasons for its rejection. If the Owner and the CMAR cannot agree on a revised amount, then, within fifteen (15) business days after its initial rejection in part of such application, the Owner shall pay directly to the CMAR the appropriate amount for those items not rejected by the Owner for which application for payment is made, less amounts previously paid by the Owner. Those items rejected by the Owner shall be due and payable when the reasons for the rejection have been removed.

6.1.3 LIEN WAIVERS AND LIENS.

6.1.3.1 PARTIAL LIEN WAIVERS AND AFFIDAVITS. If requested by the Owner, as a prerequisite for payment, the CMAR shall provide partial lien and claim waivers in the amount of the application for payment and affidavits from its Subcontractors and Material Suppliers for the completed Work. Such waivers shall be conditional upon payment. In no event shall the CMAR be required to sign an unconditional waiver of lien or claim, either partial or final, prior to receiving payment or in an amount in excess of what it has been paid.

6.1.3.2 RESPONSIBILITY FOR LIENS. If Owner has made payments in the time required by this Article 6, the CMAR shall, within thirty (30) days after filing, cause the removal of any liens filed against the premises or public improvement fund by any party or parties performing labor or services or supplying materials in connection with the Work. If the CMAR fails to take such action on a lien,

the Owner may cause the lien to be removed at the CMAR's expense, including bond costs and reasonable attorneys' fees, and said amounts may be deducted from any payments due CMAR by Owner.

6.2 ADJUSTMENT OF CMAR'S PAYMENT APPLICATION. The Owner may adjust or reject a payment application or nullify a previously approved payment application, in whole or in part, as may reasonably be necessary to protect the Owner from loss or damage based upon the following, to the extent that the CMAR is responsible under the Agreement.

6.2.1 The CMAR's failure to perform the Work as required by the Contract Documents or breach of this Agreement.

6.2.2 Loss or damage arising out of or relating to this Agreement and caused by CMAR to the Owner or others to whom the Owner may be liable.

6.2.3 The CMAR's failure to properly pay Subcontractors and material suppliers following receipt of such payment from the Owner.

6.2.4 Third-party claims involving the CMAR or reasonable evidence demonstrating that third-party claims are likely to be filed unless and until the CMAR furnishes the Owner with adequate security in the form of a surety bond, irrevocable letter of credit or other collateral or commitment satisfactory to the Owner and sufficient to discharge such claims if established.

6.2.5 No later than fifteen (15) days after receipt of an application for payment, the Owner shall give written notice to the CMAR, at the time of disapproving or nullifying all or part of an application for payment, stating its specific reasons for such disapproval or nullification, and the remedial actions to be taken by the CMAR in order to receive payment. When the above reasons for disapproving or nullifying an application for payment are removed, payment will be promptly made for the amount previously withheld.

6.3 ACCEPTANCE OF WORK. Neither the Owner's payment of progress payments nor its partial or full use or occupancy of the Project constitutes acceptance of Work not complying with the Contract Documents.

6.4 SUBSTANTIAL COMPLETION.

6.4.1 The CMAR shall notify the Owner and, if directed, the Project Architect, when it considers that Substantial Completion of the Work to have been achieved. The Owner, with the assistance of the Project Architect, shall promptly conduct an inspection to determine whether the Work can be occupied or utilized for its intended use by the Owner without excessive interference in completing any remaining unfinished Work by the CMAR. If the Owner determines that the Work has not reached Substantial Completion, the Owner, with the assistance of the Project Architect, shall

promptly compile a list of items to be completed or corrected so the Owner may occupy or utilize the Work for its intended use. The CMAR shall promptly complete all items on the list.

6.4.2 When Substantial Completion of the Work is achieved as determined by Owner, the Project Architect shall prepare and deliver to the Owner and CMAR a Certificate of Substantial Completion that shall establish the date of Substantial Completion and the respective responsibilities of the Owner and CMAR for interim items such as security, maintenance, utilities, insurance and damage to the Work, and fixing the time for completion of all items on the list accompanying the Certificate. In the absence of a clear delineation of responsibilities, the Owner shall assume responsibility for security, maintenance, and utilities. The Certificate of Substantial Completion shall be submitted by the Project Architect to the Owner for written approval and acceptance of responsibilities assigned in the Certificate.

6.4.3 Unless otherwise provided in the Certificate of Substantial Completion, warranties required by the Contract Documents shall commence on the date of Substantial Completion of the Work.

6.5 FINAL COMPLETION AND FINAL PAYMENT.

6.5.1 Upon notification from the CMAR that the Work is complete and ready for final inspection and acceptance, the Owner, with the assistance of the Project Architect, shall promptly conduct an inspection to determine if the work has been completed and is acceptable under the Contract Documents.

6.5.2 When the Work is complete, the CMAR shall prepare for the Owner's acceptance a final application for payment stating that to the best of the CMAR's knowledge, and based on the Owner's inspections, the work has reached Final Completion in accordance with the Contract Documents.

6.5.3 Final payment shall be made to the CMAR after the CMAR has submitted an application for final payment, including submissions required under section 6.5.4 and a Certificate of Final Completion has been executed by the Owner and CMAR, and only after compliance with all applicable laws. Such final payment shall be subject to the requirement of Wyo. Stat. § 16-6-116 providing for the publication in a newspaper of general circulation published nearest the point at which the Work is being carried on, once a week for three (3) consecutive weeks, and also post in three (3) conspicuous places on the Project Premises Work, a notice setting forth in substance, that the Owner has accepted the Work as completed according to the plans and specifications and rules set forth in this Agreement between the Owner and CMAR, and that the CMAR is entitled to final payment. The notice shall also set forth that upon the 41st day, with the notice specifying the exact date after the first publication of the notice, the Owner will pay to the CMAR the full amount due under this Agreement.

6.5.4 Final payment shall be due on the CMAR's submission of the following to the Owner and the completion of any and all legal requirements for the issuance of such payment.

6.5.4.1 An affidavit sworn under penalty of perjury declaring any indebtedness connected with the Work, e.g., payrolls or invoices for materials or equipment, to have been paid, satisfied or to be paid with the proceeds of final payment, so as not to encumber the Owner's property.

6.5.4.2 As-built drawings, manuals, copies of warranties, and all other close-out documents required by the Contract Documents.

6.5.4.3 Release of any liens, conditioned on final payment being received.

6.5.4.4 Consent of all sureties.

6.5.5 If, after Substantial Completion of the Work, the Final Completion of a portion of the Work is materially delayed through no fault of the CMAR or its Subcontractors, the Owner may pay the balance due for portion(s) of the Work fully completed and accepted. If the estimated Cost of the Project for Work not fully completed and accepted is less than the retained amount prior to payment, the CMAR shall submit to the Owner, and if directed, to the Architect/Engineer, the written consent of any surety to payment of the balance due for portions of the Work that are fully completed and accepted. Such payment shall not constitute a waiver of any claims or offsets.

6.5.6 Claims not reserved in writing with the making of final payment shall be waived except for claims relating to liens or similar encumbrances, warranties and Defective Work.

6.5.7 ACCEPTANCE OF FINAL PAYMENT. Unless the CMAR provides written identification of unsettled claims known to the CMAR at the time of making application for final payment, acceptance of final payment constitutes a waiver of such claims.

6.6 LIQUIDATED DAMAGES.

6.6.1 Time is of the essence in all phases of the Work. It is specifically understood and agreed by and between Owner and CMAR that time is of the essence in the Substantial Completion and Final Completion of the Project and Owner shall sustain actual and direct damages as a result of CMAR's failure, neglect or refusal to achieve said deadlines. Such actual and direct damages are, and will continue to be, impracticable and extremely difficult to determine. Execution of this Agreement under these specifications shall constitute agreement by Owner and CMAR that the amounts stated below are the minimum value of the costs and actual and direct damages caused by failure of CMAR to complete the Work within the allotted or agreed extended dates of Substantial and Final Completion, that such sums are liquidated direct damages and shall not be construed as a penalty, and that such sums may be deducted from payments due CMAR if such delay occurs. It is expressly understood that the sum per day is agreed upon as a fair estimate of the pecuniary damages which will be sustained by the Owner in the event that the Work is not completed within the agreed time, or within the agreed extended time, if any, otherwise provided for herein. Said sum shall be considered as liquidated damages only and in no sense shall be considered a penalty, said damages being caused by, but not limited to, additional compensation for personnel, attorneys' fees,

architectural fees, engineering fees, program management fees, inspection fees, storage costs, food service costs, transportation costs, utilities costs, costs of temporary facilities, loss of interest on money, and other miscellaneous increased costs, all of which are difficult to exactly ascertain. Failure to complete the Work within the designated or agreed extended dates of Substantial or Final Completion shall be construed as a breach of this Agreement.

6.6.2 LIQUIDATED DAMAGES–FAILURE TO MEET SUBSTANTIAL COMPLETION DATE. It is expressly agreed as a part of the consideration inducing the Owner to execute this Agreement that the Owner may deduct from the Final Payment made to the CMAR a dollar amount per day as set forth in the matrix within this section for each and every additional calendar day beyond the agreed date of Substantial Completion.

Contract Range	Daily Liquidated Damages Charge
\$0.00 - \$25,000.00	\$ 250.00
\$25,000.01 - \$50,000.00	\$ 500.00
\$50,000.01 - \$100,000.00	\$ 750.00
\$100,000.01 - \$500,000.00	\$ 1,000.00
\$500,000.01 - \$1,000,000.00	\$ 1,250.00
\$1,000,000.01 - \$1,500,000.00	\$ 1,500.00
\$1,500,000.01 and Greater	\$ 1,750.00

6.6.3 LIQUIDATED DAMAGES–FAILURE TO MEET FINAL COMPLETION DATE. Timely Final Completion is an essential condition of this Agreement. CMAR agrees to achieve Final Completion of the Agreement within thirty (30) days of the designated or extended date of Substantial Completion or by the date provided in the CMAR's schedule for Final Completion approved in writing by the Owner. Owner and CMAR agree that should CMAR fail to achieve Final Completion of the Agreement by the deadline, Owner shall continue to be damaged to a greater degree by such delay. CMAR and Owner agree that the amount of liquidated damages for each calendar day Final Completion is delayed beyond the date set for Final Completion shall be per the matrix in section 6.6.2. Owner may deduct from the Final Payment made to CMAR or, if sufficient funds are not available, then CMAR shall pay Owner the amounts specified per day for each and every calendar day the breach continues after the deadline for Final Completion of the Work.

6.6.4 LIQUIDATED DAMAGES–IN ADDITION TO OTHER REMEDIES. Such damages shall be in addition to, and not in lieu of, any other rights or remedies Owner may have against CMAR for failure to timely achieve Final Completion, and damages for failure to achieve Substantial Completion and failure to achieve Final Completion may run concurrently. If the Work is not finally

completed by the time stated in the Agreement, or as extended, no payments for Work completed beyond that time shall be made until the Project reaches Final Completion.

ARTICLE 7 INSURANCE AND BONDS

7.1 CMAR'S LIABILITY INSURANCE.

7.1.1 GENERALLY. The CMAR shall purchase from and maintain in a company or companies lawfully authorized to do business in the State of Wyoming as will protect the CMAR from claims set forth below which may arise out of or result from the CMAR's operations under this Agreement and for which the CMAR may be legally liable, whether such operations be by the CMAR or its Subcontractors or suppliers, or by anyone directly or indirectly employed by any of them, or by anyone for whose acts any of them may be liable, including:

- a. Claims under workers compensation, disability benefit and other similar employee benefit acts which are applicable to the Work to be performed;
- b. Claims for damages because of bodily injury, occupational sickness or disease, or death of the CMAR's employees;
- c. Claims for damages because of bodily injury, sickness or disease, or death of any person other than the CMAR's employees;
- d. Claims for damages insured by usual personal injury liability coverage which are sustained (1) by a person as a result of an offense directly or indirectly related to employment of such person by the CMAR; or (2) by another person;
- e. Claims for damages, other than to the Work itself, because of injury to or destruction of tangible property, including loss of use resulting therefrom;
- f. Claims for damages because of bodily injury, death of a person or property damage arising out of ownership, maintenance or use of a motor vehicle; and
- g. Claims involving contractual liability insurance applicable to the CMAR's obligations under section 3.18.

7.1.2 INSURANCE NOT LESS THAN LIMITS OF LIABILITY SPECIFIED. The insurance required by section 7.1.1 shall be written for not less than limits of liability specified in the Contract Documents or required by law, whichever coverage is greater. Coverages, whether written on an occurrence or claims-made basis, shall be maintained without interruption from date of commencement of the Work through the date of final payment or applicable warranty period if

required.

7.1.3 CERTIFICATES OF INSURANCE. Certificates of insurance acceptable to the Owner shall be submitted to the CMAR for transmittal to the Owner with a copy to the Project Architect prior to commencement of the Work. These certificates and the insurance policies required by this section 7.1 shall contain a provision that coverages afforded under the policies will not be canceled or allowed to expire until at least thirty (30) days' prior written notice has been given to the Owner. If any of the foregoing insurance coverages are required to remain in force after final payment and are reasonably available, an additional certificate evidencing continuation of such coverage shall be submitted with the final Application for Payment. Information concerning reduction of coverage shall be furnished by the CMAR with reasonable promptness in accordance with the CMAR's information and belief. If CMAR maintains higher limits than the minimum limits specified under section 7.1.4, the Owner and Bank shall be entitled to the higher limits maintained by CMAR.

7.1.4 LEVEL OF INSURANCE. The CMAR shall maintain the following levels of insurance coverage, to-wit:

7.1.4.1 WORKERS' COMPENSATION AND EMPLOYER'S LIABILITY.

Workers' Compensation:	Wyoming Statutory Limit
and	
Employer's Liability:	Annual Limits Per Insured (minimum)
Bodily Injury by Accident:	\$1,000,000
Bodily Injury by Disease - policy limit:	\$1,000,000
Bodily Injury by Disease - each employee:	\$1,000,000

The CMAR shall provide a blanket waiver of subrogation for the Owner and for U.S. Bank National Association (address indicated below) for all work performed by CMAR, its employees, agents and Subcontractors.

7.1.4.2 AUTOMOBILE LIABILITY.

Combined single limit of \$10,000,000 per occurrence.

7.1.4.3 COMMERCIAL GENERAL LIABILITY.

	Annual Limits of Liability (minimum)
General Aggregate:	\$11,000,000
Products/Completed Operations Aggregate:	\$10,000,000
Personal/Advertising Injury:	\$1,000,000
Each Occurrence Limit:	\$10,000,000

- a. Occurrence form.
- b. Deductible to CMAR for property damage claims not to exceed \$5,000 per occurrence.
- c. Coverage extensions to include:
 - 1. Contractual liability to include construction contracts.
 - 2. General aggregate limit applies per project:
 - i. CMAR to carry complete operations coverage for three (3) years following substantial completion (need certificate of insurance for each of three (3) years).
 - ii. Blanket waiver of subrogation for the Owner and the Bank.
 - iii. Additional insured endorsement to cover vicarious liability including completed operation.
 - iv. Remove fellow employee exclusion.
 - v. Modified Notice of Occurrence, supervisors and up.
 - vi. 60 Day notice of cancellation basis.
- d. Excludes: Asbestos, Nuclear Energy, Engineers/Project Architect's E&O.

7.1.4.4 BUILDER'S RISK INSURANCE. An original or certified copy of Builder's All-Risk, Completed Value, Non-Reporting Form Policy or Original Accord 27 Certificate of Insurance naming the Owner and U.S. Bank National Association as additional insureds, reflecting coverage of 100% of the replacement cost and written by a carrier approved by U.S. Bank National Association with a current A.M. Best's Insurance Guide Rating of at least A-IX which is authorized to do business in the State of Wyoming that affirmatively includes the following:

- a. Additional Insured Endorsement naming U.S. Bank National Association as an Additional Insured with a thirty (30) day notice to Buyer in the event of cancellation, non-renewal or material change. A Severability of Interests provision must also be included.
- b. The address for U.S. Bank National Association is as follows:

U.S. Bank National Association
Government Banking
101 East 5th Street, 9th Floor
St. Paul, MN 55101-1860
Attn: Susan Moses, Vice-President

- c. Replacement Cost Endorsement.
- d. No exclusion for Acts of Terrorism.
- e. Flood Insurance.
- f. Collapse and Earthquake Coverage.
- g. Vandalism and Malicious Mischief Coverage.
- h. Boiler and Machinery Coverage.
- i. Demotion, Increased Cost of Construction Coverage.
- j. In-Transit Coverage.
- k. Partial Occupancy Permitted.
- l. The coverage to be provided by CMAR's Builders Risk policy shall be primary with any insurance or self-insurance to be provided by the Owner or U.S. Bank National Association.
- m. Waiver of subrogation against any party whose interests are covered by the policy.
- n. Buyer's Loss Payable Endorsement naming U.S. Bank National Association with a Severability of Interest Clause with a thirty (30) day advance notice to U.S. Bank National Association in the event of cancellation, non-renewal or material change.
- o. In addition, Builder's Risk coverage shall insure against the perils of fire and extended coverage, and physical loss or damage including, and, without duplication of coverage, theft, collapse of false work, temporary buildings and debris removal, including demolition occasioned by enforcement of any applicable legal requirements, and testing of all electrical and mechanical apparatuses and associated equipment. The builder's risk policy shall insure the Owner, the CMAR, U.S. Bank National Association, and all tiers of Subcontractors. Such builder's risk insurance shall also include transit coverages for materials to be incorporated into the Project,

as well as temporary off-site storage locations.

7.1.4.5 U.S. BANK NATIONAL ASSOCIATION AND OWNER TO BE NAMED AS ADDITIONAL INSUREDS. Pursuant to an Original Accord 25 Certificate of Comprehensive General Commercial Liability Insurance naming the Owner, and its officers, officials, employees and volunteers and naming U.S. Bank National Association (address indicated above) and its officers, officials, employees and volunteers as additional insureds with respect to all insurance coverages specified in the preceding sections, with the exception of workers' compensation coverage, and providing coverage on an "occurrence" rather than a "claims made" basis and written by a carrier approved by U.S. Bank National Association with a current A.M. Best's Insurance Guide Rating of at least A-IX, which is authorized to do business in the State of Wyoming. The coverage shall affirmatively include the following:

- a. No exclusion for Acts of Terrorism;
- b. Aggregate limit to apply per location;
- c. The general commercial liability coverage to be provided by CMAR in the amounts specified above shall be primary and non-contributory with any insurance or self-insurance provided by the Owner or by U.S. Bank National Association;
- d. Waiver of subrogation against any party whose interests are covered by the policy; and
- e. Additional Insured Endorsement naming the Owner and U.S. Bank National Association with a Severability of Interest Provision and a thirty (30) day advance notice to U.S. Bank National Association in the event of cancellation, non-renewal or material change.

7.1.4.6 OWNER'S RIGHT TO INCREASE INSURANCE COVERAGES. The Owner has the right to increase the required minimum limit of liability for the Project as warranted by an increase in hazard. Examples of increased hazard include, but are not limited to:

- a. Handling of hazardous materials; and
- b. Activities involving large congregations of people.

7.1.4.7 OWNER'S RIGHT TO INSURANCE COVERAGE POLICY INFORMATION. The Owner shall have the right to consult with the CMAR's insurance companies and agents for disclosure of relevant policy information, but the Owner's failure to request or review such policies, endorsements, or certificates all not affect the Owner's rights or the CMAR's obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

- a. Exclusions;
- b. Deductibles; and
- c. Claims in progress which could significantly reduce the annual aggregate limit.

7.1.4.8 INDEMNITY; GOVERNMENTAL IMMUNITY. In entering into this Agreement, the CMAR agrees to defend, hold harmless, and indemnify the Owner, its officials, employees, agents, and authorized volunteers, and the Bank, its officials, employees, agents, and authorized volunteers, against any and all claims and costs, including attorneys' fees, arising during or resulting from the CMAR's performance of this Agreement and the CMAR shall carry insurance as set forth in this Agreement and the Contract documents. The CMAR acknowledges its understanding of this section and realizes it may have a financial responsibility to the Owner. The Owner does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, for any claim arising out of performance of this Agreement.

7.1.4.9 OWNER'S RIGHT TO INSPECT. It is expressly understood and agreed that although the Owner and the City Engineer have the right under this Agreement to observe and review the work and operations of the CMAR, the CMAR shall not be relieved of any of its covenants and obligations hereunder, and the CMAR shall be responsible for and hold the Owner and its officers, agents, employees, and other representatives harmless from all suits, actions or claims of any character due to injuries or damages sustained by any person or property in consequence of any neglect in performing the work, observing safety standards or regulations, or otherwise, or through the use of unsafe or unacceptable practices or materials in the performance of the work, or the CMAR's failure to comply with any law, ordinance or regulation.

7.2 OWNER'S LIABILITY INSURANCE. The Owner shall be responsible for maintaining the Owner's usual and customary liability coverage.

7.3 INSURANCE UPON PARTIAL OCCUPANCY. Partial occupancy or use shall not commence until the insurance company or companies providing property insurance have consented to such partial occupancy or use by endorsement or otherwise. The Owner and the CMAR shall take reasonable steps to obtain consent of the insurance company or companies and shall, without mutual written consent, take no action with respect to partial occupancy or use that would cause cancellation, lapse or reduction of insurance.

7.4 PERFORMANCE AND PAYMENT BONDS. The CMAR shall, as required by Wyo. Stat. § 16-6-112 and prior to the performance of any work on the Project, furnish to the Owner a payment bond and a bond covering faithful performance of this CMAR Agreement and payment of obligations arising thereunder in the amount of one hundred percent (100%) of the total cost of the project including the Cost of the Project, General Conditions Costs and the CMAR's Compensation for Basic Services for the Project expressed as the GMP, with such bonds having a minimum Best

Rating "A" which shall be approved in writing by Owner. The payment and performance bonds provided herein shall be for the benefit of the Owner as the named beneficiary of such bonds. The Owner shall pay for said bonds as set forth in the Contract Documents.

ARTICLE 8 MISCELLANEOUS PROVISIONS

8.1 DISPUTE RESOLUTION FOR THE PRE-CONSTRUCTION PHASE.

8.1.1 NO MANDATORY ARBITRATION. Notwithstanding anything to the contrary in this Agreement, or in any document forming a part hereof, there shall be no mandatory arbitration for any dispute arising hereunder.

8.1.2 DISPUTE RESOLUTION. The parties may by mutual agreement endeavor to settle disputes by mediation.

8.2 WARRANTY OF EXAMINATION OF CONSTRUCTION DOCUMENTS. By signing this Agreement, the CMAR does hereby agree, certify, warrant and represent on behalf of itself, and agrees to see that each Subcontractor performing the Work shall also agree, certify, warrant and represent to the Owner that their bids have been based on a full and complete examination of the Construction Documents, including as determined necessary site examination; and that all statements, facts and representations made in all submittal documents and materials are true, correct, accurate, and complete, and may be relied upon by the Owner in considering the firm's bid. The CMAR understands its responsibility to immediately provide updated and correct information if any of the information changes at any time. Any omission, falsification or misrepresentation made by the CMAR or a Subcontractor in such documents and materials or any supplement thereto, will be sufficient grounds for failure to employ the Subcontractor or terminate any contract with such Subcontractor. The CMAR and all Subcontractors, by entering into this Agreement with the Owner, consent and agree to comply at all times with all Owner policies, regulations directives, and practices.

8.3 EQUAL OPPORTUNITY EMPLOYER. By signing this Agreement, the CMAR does hereby agree, certify, warrant and represent on behalf of itself, and agrees to see that each Subcontractor shall certify, that each is an equal opportunity employer and actively recruits a well-qualified and diverse staff including minority applicants, and does not discriminate against any employee or applicant for employment by reason of race, color, national origin, religion, marital status, sex, age, disability or sexual orientation. By submitting a proposal and signing this Agreement with the Owner, the CMAR and Subcontractors agree to actively continue and implement this policy throughout the Project.

8.4 CMAR'S RESPONSIBILITY AND SUPERVISION OF CONSTRUCTION SITE AND ON-SITE PERSONNEL.

8.4.1 ACTS OR OMISSIONS OF CMAR'S EMPLOYEES. The CMAR shall be responsible to the Owner for acts and omissions of the CMAR's employees, Subcontractors and their agents and employees, and other persons or entities performing portions of the Work for, or on behalf of, the CMAR or any of its Subcontractors. As part of that responsibility, CMAR shall enforce the Owner's alcohol-free, drug-free, tobacco-free, harassment-free and weapon-free policies and zones, which will require compliance with those policies and zones by CMAR's employees, Subcontractors, and all other persons carrying out this Agreement.

8.4.3 VEHICLE PARKING. CMAR shall require all construction workers, whether CMAR's own forces or the forces of CMAR's Subcontractors, to park their personal motor vehicles on Owner's property only in the parking places designated by the Owner. Any vehicles not parked in the appropriate locations shall be towed at the vehicle owner's sole expense.

8.4.4 COMPLIANCE WITH APPLICABLE ORDINANCES. CMAR shall follow, and shall require all employees, agents and Subcontractors to follow applicable ordinances of the municipality in which the Project is located. CMAR shall barricade and protect all trees on the Project.

8.4.5 THEFT DETERRENCE PROGRAM. CMAR shall consult and coordinate with Owner the analysis of the cost of a theft deterrence program designed to restrict construction worker access to properties of Owner that are currently in use, to maintain supervision of CMAR's forces and CMAR's Subcontractor's forces, and to reimburse the Owner or those persons suffering a theft loss which results from CMAR's forces or CMAR's subcontractor's forces' actions, omissions, or failure to secure the Work or adjoining property.

8.4.6 EXCLUSION OF PERSONS WITH CRIMINAL RECORDS. By signing this Agreement, the CMAR does hereby agree, certify, warrant and represent on behalf of itself, and agrees to see that each Subcontractor performing the Work shall not assign any individual or agent to work on the Project site, while the Project site is open to the public, any person identified as a registered sex offender under the laws of the State of Wyoming. The CMAR does hereby agree on behalf of itself, and agrees to see that each Subcontractor performing the Work shall authorize and give consent, and by signing an Agreement with the Owner agrees to cooperate in obtaining any additional authorization or consent necessary to assure compliance with this requirement.

8.5 COMMENCEMENT OF WORK AND CLAIMS FOR ADDITIONAL TIME.

8.5.1 INCREASE IN CONTRACT TIME. If the CMAR wishes to make a Claim for an extension of the Contract Time, written notice as provided herein shall be given. The CMAR's Claim shall include an estimate of cost and of the probable effects of delay on the progress of the Work. No extension of time shall be granted because of hindrances or delays from any cause which is the fault of CMAR or CMAR's Subcontractors or from any other cause under CMAR's control or from

adverse weather conditions.

8.5.2 ADVERSE WEATHER CONDITIONS. CMAR shall be responsible to consider and include within the Contract Price the climatic conditions of the location of the Project that may delay the Work, and CMAR shall not be granted an extension of Contract Times (or Milestones) or amendment of the contract or contract price for the additional cost of the Project due to a delay in the Work resulting in whole or in part from adverse weather conditions.

8.5.3 INJURY OR DAMAGE TO PERSON OR PROPERTY. If either party to this Agreement suffers injury or damage to person or property because of an act or omission of the other party, or any of the other party's employees or agents, or others for whose acts such party is legally liable, written notice of such injury or damage, whether or not insured, shall be given to the other party within a reasonable time not exceeding five (5) working days after first observance. The notice shall provide sufficient detail to enable the other party to investigate the matter. This section of this Agreement does not constitute a waiver of the Owner's immunities and defenses, whether procedural or substantive, accorded to the Owner under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and other provisions of the Constitution and laws of the State of Wyoming. If a Claim for additional cost or time related to this Claim is to be asserted, it shall be filed as provided this Agreement.

8.5.4 DATE OF COMMENCEMENT AND TIME OF COMPLETION. CMAR agrees that it will begin work immediately upon receipt of notice to proceed from the Owner, and that it will diligently proceed with said Work such that the same shall be completed within the time frame stated in the Contract Documents.

8.5.5 REASONABLE SKILL AND JUDGMENT. The CMAR acknowledges that the services to be performed are essential to the effective operation of the Owner and that, therefore, the CMAR will exercise its reasonable skill and judgment to complete the services called for under this Agreement in the minimum time possible and within the time specified in such Work orders as may be issued by the Owner to the CMAR and in accordance with this Agreement and the related Contract Documents. In the event that the CMAR for good cause shown cannot complete the services for a particular task or phase within the time agreed to, the CMAR shall make a written request to the Owner in accordance with section 8.5.7 below.

8.5.6 NOTICE OF CONDITIONS CAUSING DELAY.

8.5.6.1 NOTICE OF CONDITION CAUSING DELAY. Within five (5) working days after the commencement of any condition which is causing or may cause delay in completion, the CMAR must notify the Owner in writing of the effect, if any, of such condition upon the time progress schedule and must state why and in what respects, if any, the condition is causing or may cause such delay.

8.5.6.2 FAILURE TO COMPLY. Failure to strictly comply with this requirement may, in the discretion of the Owner, be deemed sufficient cause to deny any extension of time on account of delay in completion arising out of or resulting from any change, extra work, suspension, or other condition.

8.5.7 EXTENSION OF TIME.

8.5.7.1 APPLICATION TO OWNER. Any extension or extension of time for the completion of the Work may be granted in the sole discretion of the Owner subject to the provisions of this section, but only upon written application therefor by the CMAR to the Owner.

8.5.7.2 DETAIL OF SOURCE AND NATURE OF CAUSE. An application for an extension of time must set forth in detail the source and nature of each alleged cause of delay in the completion of the Work, the date upon which each such cause of delay began, ended, or will end, and the number of days attributable to each of such causes. It must be submitted prior to completion of the Work.

8.5.7.3 BASIS OF EXTENSION OF TIME. If such an application is made, the CMAR shall be entitled to an extension of time for delay and completion of the Work caused solely: (1) by the acts or omissions of the Owner; or (2) by unforeseeable supervening conditions entirely beyond the control of either party hereto (such as, but not limited to, acts of God or the public enemy, war or other national emergencies making performance temporarily impossible or illegal, or strikes or labor disputes, but not to include adverse weather conditions as set forth herein).

8.5.7.4 LIMITED TO NUMBER OF CALENDAR DAYS. The CMAR shall, however, be entitled to an extension of time for such causes only for the number of calendar days of delay which the Owner may determine to result solely from such causes, and then only if the CMAR shall have strictly complied with all the requirements of this section. The Owner shall make such determination within thirty (30) calendar days after receipt of the CMAR's application for an extension of time; provided, however, said application complies with the requirements of this section.

8.5.7.5 ACTUAL PERIOD OF DELAY. The CMAR shall not be entitled to receive a separate extension of time for each one of several causes of delay operating concurrently but, if at all, only for the actual period of delay in completion of the Work as determined by the Owner, regardless of the number of causes contributing to produce such delay. If one of several causes of delay operating concurrently results from any act, fault, or omission of the CMAR, and would of itself (regardless of the concurrent causes) have delayed the Work, no extension of time will be allowed for the period of delay resulting from such act, fault, or omission.

8.5.7.6 DISCRETION OF OWNER. The granting of an application for an extension of time for causes of delay other than those outlined in section 8.5.7.3 shall be entirely within the discretion of the Owner. Permitting the CMAR to continue and finish the Work or any part of it after the time fixed for its completion or after the date to which the time for completion may have been extended shall in no way operate as a waiver on the part of the Owner or any of its rights under the Contract

Documents. Additionally, the CMAR shall not recover any additional compensation for any additional expense caused by such delay or delays.

8.5.8 DELAY CLAIMS. CMAR represents and warrants that the provisions herein contained for extension of time are fair and adequate and that CMAR has had an opportunity to make provision for any and all delays within the contemplation of the parties. Accordingly, it is understood and agreed that CMAR shall not have or assert any claim for damages or prosecute any suit, action, cause of action, arbitration claim, or other proceeding against the Owner for such damages arising from any delay or hindrance in the completion of the Work called for in this Agreement caused by an act or omission on the part of the Owner or CMAR, their agents, servants, employees or otherwise.

8.6 OTHER PROVISIONS.

8.6.1 EXTENT OF CONTRACT. This Agreement which includes this Agreement and the other Contract Documents incorporated herein by reference, represents the entire and integrated Agreement between the Owner and CMAR and supersedes all prior negotiations, representations or agreements, either written or oral. This Agreement may be amended only by written instrument signed by the Owner and CMAR. If anything in any document incorporated into this Agreement is inconsistent with this Agreement, this Agreement shall govern.

8.6.2 OWNERSHIP AND USE OF DOCUMENTS. The Drawings, Specifications and other documents prepared by the Project Architect and copies thereof furnished to the CMAR are the property of Owner and are for use solely with respect to this Project. They are not to be used by the CMAR, Subcontractors, or suppliers on other projects, or for additions to this Project outside the scope of the Work, without the specific written consent of the Owner and Project Architect. The CMAR, Subcontractors, Sub-subcontractors and suppliers are granted a limited license to use and reproduce applicable portions of the Drawings, Specifications and other documents prepared by the Project Architect appropriate to and for use in the execution of their Work under the Contract Documents.

8.6.3 GOVERNING LAW. This Agreement shall be governed by the laws of the State of Wyoming. Legal proceedings relating to this Agreement shall be brought only in the First Judicial District Court, Laramie County, Wyoming.

8.6.4 ASSIGNMENT. Once this Agreement is accepted and signed by the Owner, the Owner and CMAR respectively bind themselves, their partners, successors, assigns and legal representatives to the other party hereto and to partners, successors, assigns and legal representatives of such other party in respect to covenants, agreements and obligations contained in the Contract Documents. No party to this Agreement shall assign the obligations of this Agreement, in whole or in part, without the written consent of the other party. If any party attempts to make such an assignment without such consent, that party shall nevertheless remain legally responsible for all obligations under this Agreement.

8.6.6 INDEPENDENT CONTRACTOR. The CMAR shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the Owner for any purpose. The CMAR shall assume sole responsibility for any debts or liabilities that may be incurred by CMAR in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing CMAR or its agents and/or employees to act as an agent or representative of or on behalf of Owner, or to incur any obligation of any kind on behalf of the Owner. CMAR agrees that no health/hospitalization benefits, workers' compensation, and/or similar benefits available to Owner's employees will extend to the benefit of CMAR or the CMAR's employees, agents, Subcontractors, or other legal representatives as a result of this Agreement.

8.6.7 KICKBACKS. The CMAR certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the CMAR breaches or violates this warranty, the Owner may, at its discretion, terminate this Agreement without being subjected to liability to the CMAR, or the Owner may deduct from the Contract price or consideration, or otherwise recover the full amount of any commission, percentage, brokerage, or contingency fee.

8.6.8 NOTICE. All notices or invoices arising out of, or from, the provisions of this Agreement shall be in writing and given to the parties at the addresses provided under this Agreement either by regular mail, facsimile, e-mail, or delivery in person. If transmission is made electronically, Owner is not responsible for ensuring receipt or delivery. All notices sent via the U.S. Postal Service are deemed effective on the date of postmark. Notices and invoices mailed through another carrier (e.g., UPS or FedEx) are effective upon receipt.

OWNER:

City of Cheyenne
City Clerk's Office
2101 O'Neil Avenue, Room 101
Cheyenne, Wyoming 82001
Phone: (307) 637-6335
Fax: (307) 638-4340

CMAR:

FCI Constructors of Wyoming LLC
Attn: Becket Hinson, Vice President
1023 East Lincolnway
Cheyenne, Wyoming 82001
Phone: (307) 778-3085
Fax: (307) 778-3659

8.6.9 SEVERABILITY. This Agreement is subject to all applicable federal and state laws, rules, and regulations. Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of this Agreement shall continue in full force and effect, and either party may attempt to renegotiate the terms affected by the severance.

8.6.10 NO WAIVER OF RIGHTS. The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. No delay or omission

by either of the parties hereto in exercising any right or power accruing upon the noncompliance or failure of performance by the other party hereto of any of the provisions of this Agreement shall impair any such right or power or be construed to be a waiver thereof. A waiver by either of the parties hereto of any of the covenants, conditions or agreements hereof to be performed by the other party hereto shall not be construed to be a waiver of any subsequent breach thereof or of any other covenant, condition or agreement herein contained.

8.6.11 WARRANTY. CMAR warrants that it has the ability to perform the agreed upon services; it shall provide suitable resources to perform work in accordance with this Agreement; it will provide the agreed upon services on a timely basis; it shall perform services in a manner consistent with the degree of care and skill ordinarily exercised by members of the same profession currently providing construction management services under similar circumstances; and it is responsible for the construction of the Work of the Project in accordance with all designs, drawings, specifications, and other services furnished by Owner through the Project Architect for the Project.

8.6.12 This Agreement, in its entirety, shall be binding upon all the parties hereto, their respective successors, heirs, executors, administrators or assigns.

8.6.13 Execution of this Agreement shall constitute approval and acceptance of all terms, covenants and conditions as modified and contained in the Contract Documents.

8.6.14 It is mutually understood and agreed that Owner is a political subdivision of the State of Wyoming, and, as such, is protected by certain immunities and defenses under the Wyoming Governmental Claims Act, Wyo. Stat. § 1 -39-101, *et seq.*, and under the Constitution and laws of the State of Wyoming. By entering into this Agreement, Owner does not waive any of its immunities or defenses, except as otherwise specifically provided herein and as specifically authorized by law.

ARTICLE 9 TERMINATION OR SUSPENSION

9.1 SUSPENSION OF THE WORK. After commencement of the Construction Phase, the Owner may, without cause, order in writing the CMAR to suspend, delay or interrupt the Work in whole or in part for such period of time as the Owner may determine; in such event, the Contract Sum and Contract Time may be adjusted, by mutual agreement, for increases in the cost and time caused by suspension, delay or interruption. No adjustment shall be made to the extent that (1) performance is, was or would have been so suspended, delayed or interrupted by another cause for which the CMAR or its Subcontractors are responsible; or (2) that an equitable adjustment is made or denied under another provision of this Agreement.

9.2 TERMINATION OF AGREEMENT.

9.2.1 The Owner may terminate this Agreement at any time without cause. If Owner terminates this Agreement, Owner shall be entitled to any and all appropriate offsets, damages, or other remedies allowable by law.

9.2.2 The CMAR may terminate this Agreement if the Work is stopped for a period of thirty (30) consecutive days through no act or fault of the CMAR or a Subcontractor or their agents or employees or any other persons performing portions of the Work under contract with the CMAR, for any of the following reasons:

- a. Issuance of an order of a court or other public authority having jurisdiction;
- b. An act of government, such as a declaration of national emergency, making material unavailable;
- c. Because the Architect has not issued a Certificate for Payment and has not notified the CMAR of the reason for withholding certification, or because the Owner has not made payment on a Certificate for Payment within the time stated in the Contract Documents; or
- d. If repeated suspensions, delays or interruptions by the Owner constitute in the aggregate more than one hundred percent (100%) of the total number of days scheduled for completion, or 120 days in any 365-day period, whichever is less; or the Owner has failed to furnish to the CMAR promptly, upon the CMAR's request, reasonable evidence of the reasons for delay.

9.2.3 If the CMAR terminates this Agreement in accordance with section 9.2.2, the CMAR shall be paid an amount as follows:

9.2.3.1 The applicable portion of the CMAR'S Construction Service Fee (CS Fee) earned to the date of termination, as set forth in the Contract Documents.

9.2.4 ASSIGNMENT OF CONTRACTS AND PURCHASE ORDERS. The Owner, in its sole discretion, may elect to be assigned the subcontracts and purchase orders with suppliers held by the CMAR at the time of the termination of this Agreement. To the extent that the Owner elects to direct legal assignment of Subcontracts and purchase orders (including rental agreements) to another CMAR, the CMAR shall as a condition of receiving the payments referred to in this Article 9 execute and deliver all such papers and take all such steps, including the legal assignment of such Subcontracts and other contractual rights of the CMAR, if any, as the Owner may require for the purpose of fully vesting in the successor CMAR with the rights and benefits of the current CMAR under such Subcontractors or purchase orders. Subcontracts, purchase orders and rental agreements

entered into by the CMAR with the Owner’s written approval prior to the execution of this Agreement for the Project shall contain provisions permitting assignment to a successor CMAR as described above. The terms and conditions of the termination of the CMAR’s interest in the Subcontracts and the assignment thereof, if any, shall be negotiated by all parties having an interest therein, or in absence of agreement shall be resolved by the dispute resolution means available to such parties.

CONCLUSION

This Agreement, including the Contract Documents incorporated herein, shall be binding upon and inure to the benefit of the Owner and the CMAR and their respective successors and assigns.

CONSTRUCTION MANAGER AT RISK

Date

Signature

Printed Name

Title

CITY OF CHEYENNE, WYOMING

Date

Richard L. Kaysen, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk